

Online Tender of Empanelment for Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years

URL: <https://eprocure.gov.in/eprocure/app>

Bid No: CMSS/PROC/ 2019-20/NPSVH/006

CENTRAL MEDICAL SERVICES SOCIETY

Ministry of Health & Family Welfare (Government of India)

2nd floor, Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti Marg,
Opposite Police Station Chankaya Puri, New Delhi-110021

Ph -: +91-11-21410905/06, Fax -: +91-11-21410849

Email: - cmss.procurement@gmail.com, agminderjeetyadav.cmss@gmail.com

CENTRAL MEDICAL SERVICES SOCIETY

Ministry of Health and Family Welfare (Government of India)
2nd floor, Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti Marg,
Opposite Police Station Chankaya Puri, New Delhi-110021

Telephones: 011-21410905/06

Fax: 011-21410849

Email: cmss.procurement@gmail.comagminderjeetyadav.cmss@gmail.com

Online Tender of empanelment for Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years Manual bids shall not be accepted.

BID DOCUMENTS MAY BE DOWNLOADED FROM CPPP WEBSITE:
<https://eprocure.gov.in/eprocure/app> AS PER THE SCHEDULE AS GIVEN IN CRITICAL DATE
SHEET AS UNDER:

CRITICAL DATE SHEET

Published Date and Time	09.05.2019 (05.00 PM)
Bid Document Download Start Date and Time	09.05.2019 (05:30 PM)
Pre- Bid Clarification Start Date and Time	09.05.2019 (05:30 PM)
Pre bid meeting Date and Time	16.05.2019 (11:00 AM)
Last Date and Time for clarification submission on Pre-Bid queries by letter/Email (Please Note that queries beyond this date will not be accepted)	16.05.2019 (5:00 PM)
Bid Submission Start Date and Time	23.05.2019 (10 :00 AM)
Bid Document Download End Date & time	30.05.2019 (4:00 PM)
Bid Submission End Date and Time	30.05.2019 (4:00 PM)
Bid Opening Date and Time	31.05.2019 (4:00 PM)

Bids shall be submitted online only at CPPP website: <https://eprocure.gov.in/eprocure/app>. Bidder/Contractor is advised to follow the instructions provided in the 'Instructions to the Contractors/Bidder for the e-submission of the bids online through the Central Public Procurement Portal for e Procurement at <https://eprocure.gov.in/eprocure/app>'.

Bid documents may be scanned with 100 dpi with black and white option which helps in reducing size of the scanned document. Not more than one bid shall be submitted by one contractor or contractors having business relationship.

Address for Communication

: Central Medical Services Society,
2nd Floor, Vishwa Yuvak Kendra,
Pt. Uma Shankar Dikshit Marg, Teen Murti Marg,
Opposite Police Station Chankaya Puri,
New Delhi-110021

CONTENTS

Sl. No.	Descriptions	Page No.
1.	Last Date for Receipt of Tender	05
2.	Bid Validity	05
3.	Pre-Bid Meeting /Clarification	06
4.	Eligibility Criteria	06
5.	General Conditions	07
6.	Technical Bid – Packet 1	11
7.	Price Bid – Packet 2	14
8.	Opening of “Packet1” i.e. Technical Bid and Packet 2” i.e. financial Bid of Tender	14
9.	Earnest Money Deposit	15
10.	Other Conditions	17
11.	Acceptance of Bid	19
12.	Security Deposit and Agreement	20
13.	Methodology for Placing Order	21
14.	Supply/Delivery Conditions	22
15.	Packing	25
16.	Quality Control	26
17.	Payment Provisions	28
18.	Liquidated Damages and other Penalties	28
19.	Warranty	29
20.	Deduction and other Penalties on account of Delays /Default/ Termination / Part Cancellation /short closure	32
21.	Fall Clause	33
22.	Saving Clause	33
23.	Prohibition of Influencing CMSS by the Bidder	33
24.	Resolution of Disputes	34
25.	Jurisdiction	34

LIST OF ANNEXURES

S. No.	Description	Page No.
1.	Annex-I (Schedule of Requirement & Technical Specifications)	35
2.	Annex-II (Format of Forwarding Letter)	49
3.	Annex-III (Details of EMD Submitted)	50
4.	Annex-IV (Proforma for Performance Statement)	51
5.	Annex-V (Annual Turnover Statement)	52
6.	Annex-VI (List of items Quoted & Their Production Capacity)	53
7.	Annex-VII (Check List)	54
8.	Annex-VIII (Notarized Undertaking by MSEs for EMD Exemption)	56
9.	Annex-IX (Acceptance Letter Format)	57
10.	Annex-X (Terms of Agreement)	60
11.	Annex-XI (Purchase Order Format)	64
12.	Annex-XII (Mandate Form for RTGS)	68
13.	Annex-XIII (The Price Bid)	70
14.	Annex- XIV (Bank Guarantee Format for EMD)	73
15.	Annex- XV (Security Bank Guarantee Format)	74
16.	Annex- XVI (Instruction for Online Bids Submission)	75
17.	Annex – XVII (No Deviation Certificate)	79
18.	Annex- XVIII (Near Relative Format)	80
19.	Annex- XIX (Manufacturer Authorization Form)	81
20.	Annex – XX (Service Centre Details)	83
21.	Annex- XXI (Contract Form for ACMC)	84
22.	Annex – XXII (Consignee Receipt Certificate)	87
23.	Annex- XXIII (Final Acceptance Certificate)	88

Online Tender of empanelment for Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years

The CMSS, an autonomous Society of Ministry of Health & Family Welfare (Govt. of India), is responsible for procuring quality drugs, vaccines, contraceptives, medical devices, diagnostic kits and other health sector goods.

Tender Inviting Authority: DG&CEO, Central Medical Services Society, Office at Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti Marg, Chankayapuri, New Delhi – 110021 (hereinafter referred as **Tender Inviting Authority (TIA)** unless the context otherwise requires)

Tender Accepting Authority: Governing Body, Central Medical Services Society (hereinafter referred as **CMSS**, unless the context otherwise requires)

Tender Inviting Authority invites tender through online bid submission at CPPP website: <https://eprocure.gov.in/eprocure/app> for supply of Goods/Drugs to Central Medical Services Society for the one year.

The list of items to be quoted and their specifications are given in Annexure-I and the amount of EMD to be submitted is given in Annexure –III, Bidder may quote for all schedules and the EMD may be submitted accordingly as specified in Annexure –III.

Bidders are requested to submit all documents with the bid as shown as checklist (Annexure-VII). NO CLARIFICATIONS may be sought from bidders and incomplete bid may be summarily rejected at sole responsibility of bidder(s). CMSS decision in this regard will be final and binding.

1. LAST DATE FOR RECEIPT OF TENDER

Online Tenders (in two separate packets {Technical bid “Packet 1” and Price Bid “Packet 2”} will be submitted online at CPPP website: <https://eprocure.gov.in/eprocure/app> as per critical date sheet. The list of Goods/ Drugs along with their Technical Specifications are attached here as **Annexure-I.**

2. BID VALIDITY:

- i) The bid shall be valid for a period of 150 days from the date of opening of Packet 1 (Technical Bid).

- ii) In exceptional circumstances, the purchaser may request the consent of the bidder for an extension to the period of bid validity. The request and the responses thereto shall be made in writing. The bid security provided under clause 9 shall also be suitably extended. A bidder may refuse the request without forfeiting his bid security. A bidder accepting the request and granting extension will not be permitted to modify his bid.

3. PRE BID MEETING/CLARIFICATIONS:

- i) A prospective bidder, requiring any clarification of the bid documents may notify the purchaser in writing or email at the purchaser's mailing address indicated in the Invitation of bid. The purchaser shall respond in writing (to be uploaded on CPPP and on e-procurement website) to any request for clarification of bid documents, which it receives not later than date mentioned in critical date sheet and prior to the pre-bid meeting.
- ii) The Tenderers or their Official Representatives are invited to attend a pre-bid meeting which will take place as specified in critical date sheet.
- iii) Any clarification issued by CMSS in response to query raised by prospective bidders shall form an integral part of bid documents and it may amount to an amendment of the relevant clauses of the bid documents.
- iv) The clarification if any will be uploaded at CPPP and on e-procurement website and bidder is expected to see the CMSS website for clarification before submitting the bid.

4. ELIGIBILITY CRITERIA

- (a) The bidder should be an Indian or Overseas Manufacturer.
 - The bidder should be the original Equipment Manufacturer (OEM) or subsidiary of the OEM in India or Exclusive Indian Authorized Dealer.
 - In case the bidder is Manufacturer or subsidiary of the OEM in India – Self Declaration of Manufacturer should be given.
 - In Case the bidder is not the manufacturer- Manufacturer Authorization form as per Annexure XIX (Should be signed by both, Manufacturer and Bidder)
 - In case, bidder is Subsidiary of the OEM in India or Exclusive Indian Authorized Dealer then the past supply criteria of the principle (OEM) could be considered.
 - Must have a service unit in India.

- The OEM/ Bidder of the equipment offered should be in the business of the supply and Installation or Commissioning of same/similar equipment for last 3 years.
- The bidder/ Manufacturer of the equipment offered should have supplied & installed minimum 3 nos. of same model in institutions under any Central/ State Government or Central/ Reference Chain Lab/ State PSU's or local bodies in the last three years ending date of opening packet 1. If the equipment is a new technology and introduction within previous 36 months, the experience in similar equipment may be acceptable.
- Three satisfactory performance certificates (from different Users) for the institutions under any Central/ State Government or Central/ / Reference Chain Lab / State PSU's or local bodies for the demanded or similar product issued/Installed in the last 3 years, the certificate issued not more than 6 months prior to date of submission of tender. The certificate should be on the institute's letter head and should be signed by the Head of the Institution/ Head of Deptt. With communication details along with Annexure IV.

- (b) Average Annual turnover for Tenderers in the last two years i.e. 2017-18 and 2018-19 shall not be less than Rs. 4 crore. The turnover benchmark will not apply to Micro and Small Enterprises (MSE).
- (c) Tender should not be submitted by the firm/company for the Product(s) for which the firm/ Company has been blacklisted/ banned/ debarred by CMSS/ State Governments/ Central Government/ MOH&FW its Drug procurement agencies, or if the firm/company is debarred as a whole by these agencies.
- (d) Tenderer shall have an annual production capacity not less than one and half times the quantity quoted for each schedule.

5. GENERAL CONDITIONS

- (i) A complete set of tender document may be downloaded by any interested eligible bidder from website: <https://eprocure.gov.in/eprocure/app> as per the schedule given in Critical Date Sheet. No cost for the Tender document shall be charged for the Tender documents downloaded by the Tenderers.

- (ii) All tenders must be accompanied with Earnest Money Deposit as specified against each schedule in **Annexure-III** of the Tender document.
- (iii) Tenders will be opened online therefore, the presence of tenderers/ authorized representatives of the Tenderers is not necessary.
- (iv) All notices or communications relating to and arising out of this tender and any consequent agreement or any of the terms thereof shall be considered duly served on or given to the Tenderer if delivered to it or left at the premises, places of business or abode or sent at official email as provided by the tenderer.
- (v) Bidders are advised to watch for amendments, if any, which may be issued prior date of submission of bids by tender inviting authority on the website: www.cmss.gov.in and <https://eprocure.gov.in/eprocure/app> for which CMSS will not issue any separate communication to individual bidders.

(vi) FORGERY/FRAUD BY BIDDERS/SUPPLIER :

- (a) Genuineness of the papers/documents/certificates/declaration submitted with bid is the responsibility of the bidder. If at any stage it is found that the papers/ documents/certificates/declaration submitted by the bidder are not in order, are forged, manipulated, fabricated or altered, the bid or purchase order issued to the bidder is liable to be cancelled and further necessary action including forfeiture of its EMD/Security Deposit, debarring/blacklisting against the bidder will be taken. Purchaser may also initiate police/legal action and request concerned statutory authority for cancellation of license issued to supplier for tendered items.
- (b) If any fraud, short supply of goods is detected on part of the bidder at any stage, the bid or work order/ Purchase order issued to the bidder is liable to be cancelled and further necessary action against the bidder including debarring/blacklisting will be taken.
- (c) In any of above two cases, the CMSS is at liberty to make alternative purchase of the tendered items from other approved suppliers or in the open market or from any other Tenderer who might have quoted higher rates, at the risk and the cost of the supplier.

(vii) PATENT RIGHTS:

The supplier shall indemnify the purchaser against all third-party claims of infringement of patent, trademark or industrial design rights arising from use of the goods or any part thereof.

In event of any such claim in respect of alleged breach of patent, registered designs, trademarks etc. being made against TIA (Tender

Inviting Authority), the TIA shall notify the supplier of the same and the supplier shall at its own expenses take care of the same for settlement without any liability to the TIA.

(viii) TERMINATION FOR DEFAULT:

1. The purchaser may, without prejudice to any other remedy for breach of contract, by written notice of default, sent to the supplier, terminate this contract in whole or in part.
 - (a) If the supplier fails to deliver any or all of the goods within the time period(s) specified in the contract, or any extension thereof granted by the purchaser.
 - (b) If the supplier fails to perform any other obligation(s) under the contract, and
 - (c) If the supplier, in either of the above circumstances, does not remedy his failure within a period of 15 days (or such longer period as the purchaser may authorize in writing) after receipt of the default notice from the purchaser.
2. In the event the purchaser terminates the contract in whole or in part, pursuant to above the purchaser may procure; upon such terms and in such manner, as it deems appropriate, tendered goods undelivered and the supplier shall be liable to the purchaser for any excess cost for such similar goods. However, the supplier shall continue performance of the contract to the extent not terminated.

(ix) TERMINATION FOR INSOLVENCY:

The purchaser may, at any time, terminate the contract by giving written notice to the supplier, without compensation to the supplier, if the supplier becomes bankrupt or otherwise insolvent, as declared by the competent court provided that such, termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the purchaser.

(x) SET OFF:

Any sum of money due and payable to the supplier (including security deposit refundable to him) under this contract may be appropriated by the purchaser and set off the same against any claim of the purchaser

for payment of a sum of money arising out of this contract or under any other contract made by the supplier with the Purchaser.

(xi) Purchaser reserves the right to debar/ blacklist a bidder for a suitable period in case he fails to honour his bid/contract without sufficient grounds.

(xii) BID SUBMISSION:

(a) Bidders are hereby cautioned that any attempt of cartel formation will be viewed seriously and may at the discretion of purchaser, lead to cancellation of tender. Purchaser in its discretion may decide to forfeit EMD of such bidders and black list or debar these bidders for suitable period besides taking other punitive measures. Decision of purchaser in this regard shall be final and binding.

(b) (i) Different firms or companies having any common partner(s) or Director(s) are not permitted to quote for more than one tender offer. In case more than one offer is received from such bidders, then all such offers except with the lowest quote shall be rejected summarily.

(ii) In case more than one offer for any tendered item is received from the same bidder, then all such offers except with the lowest quote shall be rejected summarily.

(xiii) NEAR RELATIVE CERTIFICATE:

The bidder should give a certificate that none of his/her near relative as defined below is working in CMSS where he is going to apply for the tender. In case of Proprietorship firm certificate will be given by the proprietor. For partnership firm certificate will be given by all the partners and in case of limited company by all the Directors of the company excluding Govt. of India/Financial Institutions nominees and independent non-official part time directors appointed by Govt. of India or the Governor of the state. Authorised signatory of bid may also sign this bid on behalf of the entire directors/ partners/ proprietor. Due to any breach of conditions by the company or firm or any other person the tender will be cancelled and bid security will be forfeited at any stage whenever it is noticed and CMSS will not pay any damage to the company or firm or the concerned person. The company or firm or the person will also be debarred for further participation for quoted item in the concerned unit.

The near relatives for this purpose are defined as:

- (a) Members of a Hindu undivided family.
- (b) They are husband and wife.
- (c) The one is related to the other in the manner as father, mother, son(s) & son's wife (Daughter in law), daughter(s) and daughter's husband (son in law), brothers(s) and brother's wife, sister(s) and sister's husband (brother in law).

An undertaking as specified in Annexure XVIII to be submitted.

6. TECHNICAL BID – “PACKET 1”

Those indenting to participate in the tender (herein called Tenderer) should first ensure that they fulfil all the eligibility criteria:

- 6.1 The Tenderer should electronically submit the soft copies of following documents in Technical Bid “Packet 1”. (All the documents submitted should bear signature and stamp of the Tenderer)."
 - (a) Account Payee Demand Draft, DR Receipt, Banker's Cheque, RTGS/NEFT e-receipt or Bank Guarantee (if applicable) in respect of EMD as per Clause 5 (ii) and Clause 9 of this tender document or in case of MSE, a copy of their valid registration certificate in support of their being an MSE and a notarised undertaking given in Annexure VIII.
 - (b) Tender Forwarding letter as per Annexure-II.
 - (c) Duly notarized general power of Attorney (on non judicial stamp paper of worth Rs. 50/-) in favour of authorized signatory in case of partnership firm (to be signed by all partners) / proprietorship firm or board resolution in case of a company to sign the bid and bind the bidder. The signature of authorized signatory should be duly attested. In case of proprietorship on its letter head of firm declares himself as proprietor with specimen signature.
 - (d) The bidder should be an Indian or Overseas Manufacturer.
 - The bidder should be the original Equipment Manufacturer (OEM) or subsidiary of the OEM in India or Exclusive Indian Authorized Dealer.
 - In case the bidder is Manufacturer or subsidiary of the OEM in India – Self Declaration of Manufacturer should be given.
 - In Case the bidder is not the manufacturer- Manufacturer Authorization form as per Annexure XIX (Should be signed by both, Manufacturer and Bidder)
 - (e) Must have a service unit in India. Certificate should be furnished in the format given in **Annexure-XX**.

- (f) The OEM/ Bidder of the equipment offered should be in the business of the supply and Installation or Commissioning of same/similar equipment for last 3 years.
- Tenderer should have supplied 50% of quoted quantity in period during last 3 Financial Years (copies of PO to be submitted).
 - Capacity certificate issued by the Licensing Authority or chartered Accountant.
 - The bidder/ Manufacturer of the equipment offered should have supplied & installed minimum 3 nos. Of same model in institutions under any Central/ State Government or Central/Reference Chain Lab/ State PSU's or local bodies in the last three years ending date of initially opening packet 1. If the equipment is a new technology and introduction within previous 36 months, the experience in similar equipment may be acceptable. (copies of PO to be submitted)
- (g) Three satisfactory performance certificates (from different Users) for the institutions under any Central/ State Government or Central/ Reference Chain Lab/ State PSU's or local bodies for the demanded or similar product issued/Installed in the last 3 years, the certificate issued not more than 6 months prior to date of submission of tender. The certificate should be on the institute's letter head and should be signed by the Head of the Institution/ Head of Deptt. With communication details along with Annexure IV.
- (h) Non-Conviction Certificate issued by the FDA/ Drugs Controller of the State/ Any Competent Authority/ Self declaration by the Authorized person of bidder certifying that the firm/company has not been convicted and the products quoted have not been cancelled during last two years i.e.2017-18 and 2018-19.
- (i) Annual turnover statement for 2 years i.e., 2017-2018 and 2018-19 should be furnished in the format given in **Annexure-V** duly certified by the Chartered Accountant.
- (j) Copies of the audited Annual reports including the Balance Sheet and Profit and Loss Account along with all the annexure for the last two years i.e. 2017- 18 and 2018-19.
- (k) Certificate of Incorporation in case of Companies or Copy of partnership deed in case of partnership firm or Declaration in case of being a proprietary firm.
- (l) Last two FY ITR acknowledgement with a copy of PAN and GST Registration Certificate indicating GST Number.
- (m) List of items quoted (the name and Model of the items quoted) and relevant annual production for the last 2 years as per the **Annexure-VI** and relevant quality standards certificates and Catalogue, Data

Sheets (Technical Specification data sheet) and technical compliance statement clause by clause with Mentioned Model No & Make.

- (n) A Checklist (**Annexure-VII**) indicating the documents submitted with the tender document and their respective page numbers shall be enclosed with the tender document. The documents should be serially arranged.
 - (o) Each page of submitted bid (along with tender document) be properly page numbered and shall be signed by the authorized signatory of the Tenderer with office seal.
 - (p) All the documents enclosed with the tender document should also be signed by the authorized signatory of the Tenderer.
 - (q) No Deviation Certificate as per **Annexure- XVII**.
 - (r) Near Relative Certificate as per **Annexure –XVIII**.
 - (s) Manufacturer Authorization Form as per **Annexure- XIX/** Bidder is Manufacturer or subsidiary of the OEM in India – Self Declaration of Manufacturer should be given
 - (t) Service Centre Details as per **Annexure-XX**
 - (u) Technical specification compliance check list- **Annexure 1AA**
- 6.2 (a) The above mentioned documents are to be submitted in soft copy electronically on the CPPP portal <https://eprocure.gov.in/eprocure/app> as Technical Bid "Packet 1" as per date prescribed in critical date sheet and as per instructions of online bid submission given in **Annexure –XVI**.
- (b) **Original Bank Guarantee/ Notarised undertaking by MSE companies Annexure VII** for Exemption of EMD in physical form is to be deposited with the Tender Inviting Authority upto bid submission end date and time as per prescribed in the critical date sheet. If the last date of deposit of original Bank Guarantee/ Notarised undertaking by MSE companies Annexure VII for Exemption of EMD happens to be a central government holiday for offices located in New Delhi, next working day shall be treated as the last date of deposit. The original Bank Guarantee/ Notarised undertaking by MSE companies Annexure VII for Exemption of EMD may be either deposited in person or by courier. If sent by courier, the tenderer has to send it in advance so as to make sure that the original Bank Guarantee/ Notarised undertaking by MSE companies Annexure VII for Exemption of EMD is delivered to the Tender Inviting Authority by the date specified in critical date sheet. Failure to deposit the original Bank Guarantee/ Notarised undertaking by MSE companies Annexure VII for Exemption of EMD by the specified last date shall result in rejection of bid summarily.

7. **PRICE BID-“Packet 2”**

7.1 ““Packet 2” is for the Price Bid of the Tenderer.

- i) Bid should be uploaded online in the form of **BOQ**.
- ii) Format of the Schedules of price bid is available in **Annexure-XIII & Annexure-XIII-I**.
- iii) The supplier shall quote **only in INRs** and as per price schedule given in **Annexure-XIII** for all the items quoted by him schedule of requirement.
- iv) The price quoted (**INRs**) shall be the landed price per unit at the specified locations on DDP basis and shall include all taxes and duties including transportation and other incidental expenditure for delivery at CMSS warehouses/Consignee site.
- v) The rate quoted in Price Schedule **Annexure-XIII** should be for a unit as given in specifications as detailed in the tender document. The bidder is not permitted to change / alter specification or unit size in the box.

7.2 **GST (Goods and Service Tax)/other statutory Taxes/Levies**

- i) The bidder may quote for GST as per applicability in accordance with relevant Government notification.
- ii) Any variation upwards/downwards as a result of statutory variation in GST/ other taxes/duties/levies for supplies during original *specified delivery schedule* of goods shall be allowed.
- iii) Any upward/downward revision (only during scheduled delivery period) in statutory taxes, levies will be allowed and benefit will pass on to supplier/purchaser.
- iv) Any increase in taxes and other statutory duties/levies after the expiry of the delivery date shall be to the supplier's accounts. However, the benefit of any decrease in these taxes/duties shall be passed on to the purchaser by the supplier.

7.3 The basic unit price quoted by the bidder shall remain fixed during the entire period of contract and shall not be subject to variation on any account. A bid submitted with an adjustable price quotation will be treated as non-responsive and rejected.

8. **OPENING OF “PACKET 1” i.e. ‘TECHNICAL BID AND “PACKET 2” i.e. FINANCIAL BID’ OF TENDER CLARIFICATION OF BIDS SUBMITTED:**

8.1 To assist in the examination, evaluation and comparison of bids, the purchaser may, at his discretion ask the bidder for the clarification in its

- bid. The request for the clarification and response shall be in writing. However, no post bid clarification at the initiative of the bidder shall be entertained.
- 8.2 Presence of authorized official of the Tenderer is not necessary at the time of opening of Technical Bid - "Packet 1" as opening is online.
- 8.3 The purchaser shall evaluate the bids to determine whether they are complete, whether any computational errors have been made, whether required sureties have been furnished, whether the documents have been properly signed and whether the bids are generally in order.
- 8.4 Prior to the detailed evaluation, pursuant to clause above, the purchaser will determine the substantial responsiveness of each bid to the bid documents for purposes of these clauses. A substantially responsive bid is one, which confirms to all the terms and conditions of the bid documents without material deviations. The purchaser's determination of bid's responsiveness shall be based on the contents of the bid itself without recourse to extrinsic evidence.
- 8.5 A bid determined as substantially non-responsive will be rejected by the purchaser and shall not subsequent to the bid opening be made responsive by the bidder by correction of the non-conformity.
- 8.6 The purchaser may waive any minor infirmity or non-conformity or irregularity in a bid, which does not constitute a material deviation, provided such waiver does not prejudice or affect the relative ranking of any bidder. Such minor infirmity will be identified by the TEC and clarification in this regard may be called for.
- 8.7 "Packet 2" will be opened only for tenderers, who are found **techno-commercially** eligible on satisfying the criteria for technical evaluation and plant inspection **(wherever necessary)** based on the documents submitted in "Packet 1". Presence of authorized official of Tenderers is not necessary in opening of "Packet 2" as opening is online.
- 8.8 Arithmetical errors shall be rectified on the following basis. If there is a discrepancy between the unit price and total price that is obtained multiplying the unit price and quantity, the unit price shall prevail and total price shall be corrected by the purchaser. If there is a discrepancy between words and figures, the amount in words shall prevail.

9. EARNEST MONEY DEPOSIT

- 9.1. (a) The Earnest Money Deposit (EMD) is payable by all Tenderers, for an amount indicated in Annexure-III UNLESS EXEMPTED under clause 9.2 In case a Tenderer is quoting for more than one item, the Earnest Money Deposit payable by such Tenderer shall be the aggregate total of the Earnest Money Deposit for all the items

quoted by such Tenderer. The Tenderers are required to furnish the breakup of the Earnest Money Deposit for the items quoted in the format as per **Annexure-III**. The Earnest Money Deposit shall be paid by **Account Payee Demand Draft, FD receipt, Banker's cheque or Bank Guarantee or RTGS/NEFT** in the following Bank Account:

Beneficiary Name : Central Medical Services Society
A/C No. : 32719062216
Bank Name : SBI Bank
Branch : Nirman Bhawan, Maulana Azad Road, New Delhi
IFSC Code : SBIN0000583

- b. The Bank Guarantee can also be accepted as a mode of payment and the named beneficiary shall be **Central Medical Services Society**. The Bank guarantee shall be issued by a bank (Nationalized or Scheduled Bank) in India to make it enforceable and acceptable to the purchaser. The Bank Guarantee shall be in the format as per **Annex-XIV** provided in the tender document. Bank Guarantee shall remain valid for 45 days beyond the validity period for the bid and will be extended accordingly beyond any extension subsequently requested by purchaser.
- c. The applicable EMD amount has been indicated in **Annexure-III**.

9.2 EXEMPTION FROM PAYMENT OF EARNEST MONEY DEPOSIT TO MSME (MICRO SMALL & MEDIUM ENTERPRISES)

- (i) MSE firms as per classification given in MSME Act 2006 and holding Permanent Registration Certificate from the District Industries Centers or Khadi and Village Industries Commission or Khadi and Village Industries Board or Coir Board or National Small Industries Corporation or any other body specified by Ministry of Micro Small and Medium Enterprises will be granted exemption from payment of Earnest Money Deposit in respect of items for which the Registration Certificate has to be produced.
- (ii) The MSE Units will be required to furnish a notarized undertaking (as per **Annexure-VIII**) to the effect that in the event of non fulfillment or non observance of any of the conditions stipulated in the contract, the MSE Unit shall pay a penalty, equivalent to the Earnest Money Deposit to offset the loss incurred by the Tender Inviting Authority consequent on such breach of any bid condition.

- (iii) The MSEs participating in the tender shall enclose with their tender a copy of their valid registration certificate with District Industries Centers or Khadi and Village Industries Commission or Khadi and Village Industries Board or Coir Board or National Small Industries Corporation or any other body specified by Ministry of Micro Small and Medium Enterprises in support of their being an MSE, failing which their tender will be liable to be ignored/rejected

9.3. (i) Offers of the firms submitted without EMD / for a shorter period/lesser amount as demanded will summarily rejected.

- (ii) The Earnest Money Deposit will be refunded to the lowest responsive bidder/s within 30 days from the date of signing the contract agreement and on the deposit of Security Deposit.

- (iii) The Earnest Money Deposit (EMD) furnished by all unsuccessful tenderers will be returned as early as possible after the expiration of the period of tender validity but not later than 30 days of the award of the contract.

9.4 **FORFEITURE OF EMD:**

- (i) The Earnest Money Deposit (EMD) will be forfeited, if the Tenderer withdraws or amends, impairs or derogates from the tender in any respect within the period of validity of his tender.
- (ii) The Earnest Money Deposit (EMD) will be forfeited, in case of the lowest/ matched bidder, fails to execute the contract agreement and / or deposit the Security Deposit within the stipulated time.
- (iii) In both the above cases, the bidder will not be eligible to participate in the tender for same item for one year from the date of issue of letter of acceptance (LOA). The bidder will not approach the court against the decision of the CMSS in this regard.

10. **OTHER CONDITIONS:**

10.1 The details of the annual required quantity of **items** are shown in **Annexure-I**

- (i) Central Medical Services Society (CMSS) will have the right to increase or decrease up to 25% of the quantity of goods and/or services specified in the schedule of requirements without any

change in the unit price or other terms and conditions at any time of agreement period.

- (ii) In exceptional situation where the requirement is of an emergent nature and it is necessary to ensure continued supplies from the existing vendors, the purchaser reserves the right to place repeat order up to 50% of the quantity of the goods and/or services contained in the running tender/contract up to a period of twelve months from the earliest date of acceptance of letter of acceptance (LOA) at the same rate or a rate negotiated (downwardly) with the existing vendors considering the reasonability of rates based on prevailing market conditions and the impact of reduction in duties and taxes etc.

- 10.2 (i) The rates quoted and accepted will be binding on the Tenderer for the full contract period of three year and any increase in the price will not be entertained till the completion of this contract period.
- (ii) Any upward/downward revision (only during scheduled delivery period) in statutory taxes, levies will be allowed and benefit will pass on to supplier/purchaser.
- (iii) Any increase in taxes and other statutory duties/levies after the expiry of the delivery date shall be to the supplier's accounts. However, the benefit of any decrease in these taxes/duties shall be passed on to the purchaser by the supplier.

10.3 In exercising of the powers conferred in Section 11 of the Micro, Small and Medium Enterprises Development (MSMED) Act 2006, the Government has notified a new Public Procurement Policy for Micro & Small Enterprises effective from 9th November 2018. The policy mandates that 25% of procurement of annual requirement of goods and services by all Central Ministries / Public Sector Undertakings will be from the Micro and Small Enterprises. Government has also earmarked a sub target of 4% procurement of goods & services out of 25% from MSEs owned by SC/ST entrepreneurs and 3% to micro and small enterprises owned by women.

10.4 In accordance to the above notification the participating Micro and Small Enterprises (MSEs) in a tender, quoting price within the band of $L1 + 15\%$ would be allowed to supply a portion of the requirement by bringing down their price to the L 1 price, in a situation where L 1 price is from someone other than an MSE. Such MSEs would be allowed to supply up to 20% of the total tendered value. In case there are more than one such eligible MSE, the 20% supply will be

shared equally. Out of 20% of the quantity earmarked for supply from MSEs, 4% quantity is earmarked for procurement from MSEs owned by SC/ST entrepreneurs. However, in the event of failure of such MSEs to participate in the tender process or meet the tender requirements and the L1 price, the 4% quantity earmarked for MSEs owned by SC/ST entrepreneurs will be met from other participating SMEs.

11. ACCEPTANCE OF BID/ TENDER

- 11.1 Technically responsive tenders will be evaluated based only on the "landed price"(all-inclusive price), i.e. Rate per Unit inclusive of all taxes, duties, transportation & other charges as given in Annexure-XIII by the tenderer.
- 11.2 The evaluation for ranking shall be carried out on the basis of "all inclusive" prices of the goods offered for each schedule separately.
- 11.3 The purchaser reserves the right to accept or reject any bid, and to annul the bidding process and reject all bids, at any time prior to award of contract without assigning any reason whatsoever and without thereby incurring any liability to the affected bidder or bidders on the grounds of purchaser's action.
- 11.4 (i) CMSS or its authorized representative(s) has the right to inspect the factories of Tenderers, before accepting the rate quoted by them or before releasing any purchase order(s) or at any point of time during the continuance of tender and also has the right to reject the tender or terminate/ cancel the purchase orders issued and/or not to place further order, based on adverse reports brought out during such inspections. In such situation CMSS reserves the right to take other actions against the tenderer including forfeit of security deposit, debarring/blacklisting for appropriate period.
- (ii) The Tenderer shall allow inspection of the factory at any time by a team of Experts/ Officials nominated by the Tender Inviting Authority for the purpose. The Tenderer shall extend necessary cooperation to such team in inspection of the manufacturing process, quality control measures adopted etc., in the manufacture of the items quoted. If Company/ Firm does not allow for any such inspection, their tenders will be rejected during the currency of the contract.

- 11.5 The acceptance of the tenders will be communicated to the lowest / matched tenderers in writing (through email), as per format of the Acceptance Letter given in **Annexure- IX**

12. SECURITY DEPOSIT AND AGREEMENT

12.1 Security Deposit:

On being intimated about the acceptance of the tender the L1/Matched tenderer shall pay a Security Deposit **Rs. 10,00,000/-**. The Security Deposit amount to be deposited in the form of **Account Payee Demand Draft, FD receipt, Bank Guarantee or NEFT/RTGS** in favor of **Central Medical Service Society**. The Security Deposit in any other form like Cash/ Cheque/ Postal-Order will not be accepted. In case of depositing security deposit by Bank Guarantee, the named beneficiary shall be **Central Medical Services Society**. The Bank Guarantee shall be issued by a bank (Nationalized or Scheduled Bank) in India to make it enforceable and acceptable to the purchaser. The Bank Guarantee shall be in the format as per **Annexure- XV** provided in the tender document.

- 12.2 The Performance Bank Guarantee shall be valid for for a period up to sixty (60) days after the date of completion of all contractual obligations by the supplier.

- 12.3 The lowest/ matched tenderer shall execute an Agreement on a non-judicial stamp paper of value of Rs.100/- (stamp duty to be paid by the Tenderer) within 15 days from the date of the intimation from CMSS informing that his tender has been accepted. The Specimen form of Agreement is available in **Annexure-X**.

- 12.4 The proceeds of the performance security shall be payable to the purchaser as compensation for any loss resulting from the supplier's failure to complete its obligations under the contract.

12.5 The performance security bond will be discharged by the purchaser after completion of the supplier's performance obligations including any warranty obligations under the contract.

12.6 Failure to deposit the performance security will attract clause 9.4.

13. METHODOLOGY FOR PLACING ORDERS

For placing orders the following procedures will be adopted:

- a. After the Price Bid opening (Packet 2), the lowest offer will be declared as the L1 tenderer. CMSS reserves right to negotiate prices with L1 bidder in justified cases.
- b. The Tenderer, who has been declared as Lowest Tenderer for certain item(s), shall within the tender issue of LOA (letter of acceptance) execute necessary Agreement for the supply of the allocated quantity of such drugs/goods as specified in the Tender Document after depositing the required amount as Security Deposit and on execution of the agreement such Tenderer shall supply goods on receipt of Purchase Orders. The format of LOA, agreement, Purchase Order is attached at Annexure – IX, X, XI respectively. Generally speaking the draft art work should be given in technical specifications however, in those cases where draft artwork not given in tender specifications, the vendor must need to coordinate with respective programme division of ministry to freeze (get approval) for the art work. No extension would be given on this pretext.
- c. If two or more than two Tenderers are declared as lowest suppliers for the same item(s)(i.e. emerge-L1), such Tenderers shall execute necessary agreement as specified in the Tender Document on depositing the required amount as Security Deposit and on execution of the agreement such Tenderer will be eligible for placement of Purchase Orders for equal proportion of tendered quantities (50:50 or 33.33:33) for such item(s) for which they are declared as lowest (L1).
- d. If the lowest supplier has failed to supply the required Drugs/goods within the stipulated time or within the extended time, as the case may be, CMSS may cancel such purchase orders and on cancellation, CMSS may place Purchase Orders with the Matched Lowest Tenderer or to the other tenderers at the risk and cost of the defaulted supplier.
- e. The supplier shall complete the supply of the Drugs/ Goods required by CMSS at the consignee destination mentioned in the schedule, within minimum required period of 75 days or as stipulated in LOA. from the date of the purchase orders, which will be sent by email to the successful tenderer.

- f. The supplier shall supply the Drugs/Goods at the specified destination and submit a copy of the Purchase Order, Delivery Challan and other relevant documents at the same destinations.
- g. After supply of Drugs/Goods at the specified destinations, the supplier shall submit Delivery Challan , Consignee Receipt Certificate (As per Annexure XXII, Packing List, Inspection Certificate issued by nominated inspection agency, Certificate of Origin, Final Acceptance Certificate (As per Annexure XXIII) and other relevant documents etc., at the **Concerned Consignee**.
- h. Subject to para (h) and para (i) above, **Concerned consignee** will process the invoices submitted by the supplier and the payments against supply will be made within **30 days** from the date of submission of all relevant documents to the **Concerned Consignee** provided the Drugs/goods supplied has been declared of STANDARD QUALITY, by the Empanelled Laboratory of CMSS/ Any nominated agency.

14. SUPPLY / DELIVERY CONDITIONS

- 14.1 The supplier should acknowledge the receipt of the Purchase Order within 3 days of its receipt.
- 14.2 The supplies will be made in staggered quantities as detailed in Annexure –I.
- 14.3 (a) The supplier shall supply, the ordered quantity within minimum required period of 75 days from the date of LOA at the destinations mentioned in the purchase order. If the above day happened to be a holiday for CMSS, the supply should be completed by 5.00 PM on the next working day. In case of non-execution of the order either partially or fully, CMSS reserves the right to cancel the purchase order or place fresh purchase orders on alternative source at the risk and cost of the default supplier. In such cases the CMSS, has every right to recover the cost and impose penalty including blacklisting of the supplier and the product.
- Installation & commissioning, supervision, Demonstration, Trial run and training etc. Installation and commissioning shall be completed within 30 days of handing over the site of installation, complete in all respect by the consignee
- (b) With the prior approval of CMSS, the supplier may continue the supply, Installation & Commissioning the unexecuted quantity after 75th day or after the delivery dates/schedule as mentioned in LOA, with Liquidated

Damages as specified in Clause 18 of the tender conditions on the delayed supplies.

(c) Supplies should be made directly by the tenderer and not through any other Agency/Dealer/ Distributor.

(d) The Tenderer shall not, at any time, assign, or make over the contract or the benefit thereof or any part thereof to any person or persons what so ever.

(e) Transportation of Goods

- Instructions for transportation of domestic goods including goods already imported by the supplier under its own arrangement:
- In case no instruction is provided in this regard, the supplier will arrange transportation of the ordered goods as per its own procedure.

(f) Insurance

- In case of supply of goods on Consignee site basis, the supplier shall be responsible till the entire contracted stores arrive in good condition at destination. The transit risk in this respect shall be covered by the Supplier.

(g) Spares and Consumables

Supplier shall carry sufficient inventories to assure ex-stock supply of consumables and spares for the goods so that the same are used during contract period.

8400 Tests Reportable in stock with proper storage as per mandate of kits/reagents. Kits will be delivered to any of 11 sites as per requirement with in week as per confirmation by email/ letter.

(h) Incidental services

The supplier shall be required to perform the following services:

- i) Installation & commissioning under its supervision and demonstration of the working of the goods supplied. The goods offered should be suitable for Indian electrical rating as follows: Power supply: 200-230V, 50Hz (Single Phase) or 400-440V, 50Hz (3 Phase).
 - ii) Providing required jigs and tools for assembly, minor civil works required for the completion of the installation.
 - iii) Training of Consignee's doctors, staff, operators etc. for operating and maintaining the goods
- v) Supplying required 3 number of Instruction, Testing & Maintenance and operation manual, for the goods, Catalogue and Literature, Data Sheet, Relevant Test certificate, Quality Certificate, Guarantee Certificate and Any Others related documents.

- vi) This shall include installation & commissioning, supervision, Demonstration, Trial run and training etc. Installation and commissioning shall be completed within 30 days of handing over the site of installation, complete in all respect by the consignee. The date of handing over of the site has to be intimated by the supplier to the TIA. The delay on the part of the supplier to install and commissioning the equipment will attract the provision as contained in the liquidated damage clause.

(i) Distribution of Dispatch Documents for Clearance/Receipt of Goods

The supplier shall send all the relevant despatch documents well in time to the TIA/Consignee to enable the TIA/Consignee clear or receive (as the case may be) the goods in terms of the contract.

The usual documents involved and the drill to be followed in general for this purpose are as follows.

Within 24 hours of despatch, the supplier shall notify the TIA/consignee, and others concerned if mentioned in the contract, the complete details of despatch and also supply the following documents to them by registered post / speed post / courier:

- (i) Two copies of supplier's delivery challan showing contract number, goods description, quantity.
- (ii) Consignee Receipt Certificate in original issued by the authorized representative of the consignee, to be signed by store in-charge and returned to the supplier.
- (iii) Packing list identifying contents of each package.
- (vi) Inspection certificate issued by the nominated Inspection agency, if any.
- (v) Certificate of origin.
- (vi) Manufacturers/Supplier's warranty certificate & In-house inspection certificate

14.4 All the Tenderers are required to supply the product(s) with printed text "GOVT. OF INDIA SUPPLY – NOT FOR SALE" in red-colour on the Stickers and also on the external packings. Goods received without this print will not be accepted by CMSS/Consignee. Affixing of rubber stamp shall not be accepted. However, the approved art work will prevail.

14.5 The Tenderer shall take back goods, which are not utilized by the CMSS within the shelf life period, based on mutual agreement.

14.6 If at any time the Tenderer has, in the opinion of the CMSS, delayed the supply of drugs/ goods due to one or more reasons related to Force Majeure events such as riots, mutinies, wars, fire, storm, tempest or other exceptional events at the manufacturing premises, the time for supplying the drugs may

be extended by the CMSS at its discretion for such period as may be considered reasonable. However, such extension shall be considered only if a specific written request is made by the Tenderer within 10 days from the date of occurrence of such event. The exceptional events do not include scarcity of raw material, increase in the cost of raw material, electricity failure, labour disputes/ strikes, insolvency, and closure of the factory/ manufacturing unit on any grounds etc.

- 14.7 The supplier shall not be liable to pay LD/ penalty and forfeiture of security deposit for the delay in executing the contract on account of the extension of supply period on the ground of force majeure events.

15. PACKING

- 15.1 The Drugs/Goods shall be supplied in the package specified in the Technical Specifications in **Annexure-I**.

- The packing for the goods to be provided by the supplier should be strong and durable enough to withstand, without limitation, the entire journey during transit including transshipment (if any), rough handling, open storage etc. without any damage, deterioration etc. As and if necessary, the size, weights and volumes of the packing cases shall also take into consideration, the remoteness of the final destination of the goods and availability or otherwise of transport and handling facilities at all points during transit up to final destination as per the contract.
- The quality of packing, the manner of marking within & outside the packages and provision of accompanying documentation shall strictly comply with the requirements as provided in Technical Specifications. In case the packing requirements are amended due to issue of any amendment to the contract, the same shall also be taken care of by the supplier accordingly.

- Packing instructions:

Unless otherwise mentioned, the supplier shall make separate packages for each consignee (in case there is more than one consignee mentioned in the contract) and mark each package on three sides with the following with indelible paint of proper quality:

- a. contract number and date
- b. brief description of goods including quantity
- c. packing list reference number
- d. country of origin of goods
- e. consignee's name and full address and
- f. supplier's name and address

16. QUALITY CONTROL

16.1 Quality Control is an essential part of the current procurement and it is the responsibility of the supplier to ensure quality assurance as per specifications/bid document. The products should conform to the standards as specified in Annexure-I of the Tender document.

- The TIA(Tender Inviting Authority and/or its nominated representative(s) may, inspect and/or test the ordered goods and the related services to confirm their conformity to the contract specifications and other quality control details incorporated in the contract. The TIA shall inform the supplier in advance, in writing, the TIA's programme for such inspection and, also the identity of the officials to be deputed for this purpose.
- The Technical Specification and Quality Control Requirements incorporated in the contract shall specify what inspections and tests are to be carried out and, also, where and how they are to be conducted. If such inspections and tests are conducted in the premises of the supplier or its subcontractor(s), all reasonable facilities and assistance, including access to relevant drawings, design details and production data, shall be furnished by the supplier to the TIA's inspector at no charge to the TIA.
- If during such inspections and tests the contracted goods fail to conform to the required specifications and standards, the TIA's inspector may reject them and the supplier shall either replace the rejected goods or make all alterations necessary to meet the specifications and standards, as required, free of cost to the TIA and resubmit the same to the TIA's inspector for conducting the inspections and tests again.
- In case the contract stipulates pre-despatch inspection of the ordered goods at supplier's premises, the supplier shall put up the goods for such inspection to the TIA's inspector well ahead of the contractual delivery period, so that the TIA's inspector is able to complete the inspection within the contractual delivery period.
- If the supplier tenders the goods to the TIA's inspector for inspection at the last moment without providing reasonable time to the inspector for completing the inspection within the contractual delivery period, the inspector may carry out the inspection and complete the formality beyond the contractual delivery period at the risk and expense of the supplier. The fact that the goods have been inspected after the contractual delivery period will not have the effect of keeping the contract alive and this will be without any prejudice to the legal rights and remedies available to the TIA under the terms & conditions of the contract.
- The TIA's/consignee's contractual right to inspect, test and, if necessary, reject the goods after the goods' arrival at the final destination shall have no bearing

of the fact that the goods have previously been inspected and cleared by TIA's inspector during pre-despatch inspection mentioned above.

- Goods accepted by the TIA/consignee and/or its inspector at initial inspection and in final inspection in terms of the contract shall in no way dilute TIA's/consignee's right to reject the same later, if found deficient in terms of the warranty clause of the contract.

16.2 The bidder/ supplier understand that the tendered item/items is/are critical health goods and the quality parameters of supplied goods are to be ensured during complete specified shelf life as indicated in technical specification/bid document/ official compendium. Bidder/Supplier also appreciate that failure in quality checks is serious default as it may derail entire programme and can also risk the life of users of supplied health goods.

16.3 CMSS will embark on stringent quality checks to ensure that tendered goods meet required standards. For this purpose, CMSS reserves the right to carry necessary inspections/tests at any of, or any combination of or/ all of following stages:

(a) At Pre-Dispatch stage- team of experts can be constituted by the program division for inspection of the goods for confirmation of quality .

(b) At Delivery Stage: inspection done once the goods reach at consignee location and before taking over supplied goods in inventory.

(c) Post Delivery Surveillance:. Quality Monitoring Activities may also be organized by CMSS post delivery.

16.4 In case of failure of goods during or at any stage (indicated at 16.3), the testing / Inspection charges would be claimed for the defaulting vendor.

16.5 The supplies will be deemed to be completed only upon receipt of the Inspection report

"Not of Standard Quality/ Required Specification" such goods will be deemed to be rejected goods.

16.6 At any of Inspection/testing stage, samples which do not meet quality requirement/specifications shall render the relevant batches goods liable to be rejected. If the sample is declared to be "Not of Standard Quality / Required Specification", such goods will be deemed to be rejected goods Besides action may also be initiated for debarring/blacklisting against supplier for suitable period.

16.7 In the event of the samples of Drugs/goods supplied fails in quality tests or found to be not as per specifications at any of testing stages, depending upon

the type, nature and seriousness of failure, consequences resulting from such default, availability of alternate sources, the CMSS is at liberty to either :

- (i) Action to debar/blacklist the supplier for suitable period, as decided by CMSS may also be initiated, in addition to forfeiture of PSD.
- (ii) In addition, the FDA/ Drugs Control Authority of concerned State/ Competent Authority will be informed for initiating necessary action on the Tenderer in their state. Security deposit will also be forfeited without any intimation.
- (iii) The decision of the CMSS or any officer authorized by CMSS, as to the quality of the supplied equipments, drugs, medicines, vaccines etc., shall be final and binding.

17. PAYMENT PROVISIONS

17.1 Payment Terms

The payment will be made by the Institute based as per invoice to be submitted by vendor on monthly basis. All control & calibration costs for reagent/equipment shall be borne by the manufacturer. The payment will be made on a monthly basis with in 30 days after submission of appropriate documents, verification as per rules. The placement of order as well as payment shall be on the no. of kits supplied.

18. LIQUIDATED DAMAGES AND OTHER PENALTIES:

18.1 DELAYS IN SUPPLIER'S PERFORMANCE:

Rs. 3000 per day in respect of clause no 18

- (a) Delivery of the goods and performance of services shall be made by the supplier in accordance with the time schedule specified by the purchaser in its purchase order. In case the supply is not completed in the stipulated delivery period, as indicated in the purchase order, purchaser reserves the right either to short-close/cancel this purchase order and/or recover liquidated damage charges. The cancellation/short-closing of the order shall be at the risk and responsibility of the supplier and purchaser reserves the right to purchase balance-unsupplied quantity at the risk and cost of the defaulting vendor.
- (b) Repeated/habitual delays by the supplier in the performance of its delivery obligations shall render the supplier liable to any or all of the following sanctions; imposition of liquidated damages, forfeiture of its performance security, and/or termination of the contract for default and purchaser reserves the right to purchase balance-unsupplied quantity at the risk and cost of the defaulting vendor.

- (c) If the suppliers are not completed in the extended delivery period, the purchase order may be short closed without any compensation to supplier and the performance security shall be forfeited.
- (d) Quantum of liquidated damages assessed and levied by the purchaser shall be final and not challengeable by the supplier.
- (e) Purchaser reserves the right to debar/blacklist the supplier for a suitable period who habitually failed to supply the goods/services in time. The decision of purchaser will be final and binding.
- (f) Downtime Penalty- The maximum time allowed to attend any maintenance/ repair call by the supplier shall be within 48 hours in metro cities and 96 hours in hard to reach areas. The supplier if does not attend and resolve the maintenance/ repair call within said period, CMSS will have the right to levy penalty of same quantum as at clause no 18.2.
- (g) Installation and commissioning shall be completed within 30 days of handing over the site of installation, complete in all respect by the consignee. The date of handing over of the site has to be intimated by the supplier to the TIA. The delay on the part of the supplier to install and commissioning the equipment will attract the provision as contained in the liquidated damage clause 18.2.

18.2 If the supply reaches the designated consignee places or CMSS Warehouse after the 75th day or after scheduled delivery date mentioned in LOA., a liquidated damages will be levied at Rs. 3000 per day for delayed supply up to a maximum of 10% of P.O. Cost, irrespective of the fact that whether the CMSS has suffered any damage/ loss or not, on account of delay in effecting supply. If the 75th day happens to be a holiday the supply will be accepted on the next working day without any penalty.

18.3 If the supply is received in damaged condition it shall not be accepted. In case of damage in the packing only, the supply may be accepted subject to purchaser's decision and after levying a penalty which may be upto 5% of cost of package received with damaged packing.

19. WARRANTY

- **Warranty period- 3 years from the date of installation and commissioning.**

The supplier warrants comprehensively that the goods supplied under the contract is new, unused and incorporate all recent improvements in design and materials unless prescribed otherwise by the TIA in the contract. The supplier further warrants that the goods supplied under the contract shall have

no defect arising from design, materials, manufacturing or workmanship or from any act or omission of the supplier that may develop under normal use of the supplied goods under the conditions prevailing in India.

19.1 The warranty shall remain valid for the period as mentioned in the list of requirement/ General Technical specification, after the goods or any portion thereof as the case may be, have been delivered, installed and commissioned at the final destination.

- a. No conditional warranty will be acceptable.
- b. Warranty as well as Comprehensive Maintenance contract will be inclusive of all accessories and Turnkey work and it will also cover the following wherever applicable:-
 - Any kind of motor.
 - Plastic & Glass Parts against any manufacturing defects.
 - All kind of sensors.
 - All kind of coils, probes and transducers.
 - Printers and imagers including laser and thermal printers with all parts.
 - UPS including the replacement of batteries.
 - Air-conditioners
 - All kinds of coils, probes and transducers.
 - Computers and all preloaded Softwares.
- c. Replacement and repair will be under taken for the defective goods.
- d. Proper marking has to be made for all spares for identification like printing of installation and repair dates.
- In case of any claim arising out of this warranty, the TIA/Consignee shall promptly notify the same in writing to the supplier.
- Upon receipt of such notice, the supplier shall, within 48 hours in metro cities and 96 hours in hard to reach areas on a 24(hrs) X 7 (days) X 365 (days) basis respond to take action to repair or replace the defective goods or parts thereof, free of cost, at the ultimate destination. The supplier shall take over the replaced parts/goods after providing their replacements and no claim, whatsoever shall lie on the TIA for such replaced parts/goods thereafter. The penalty clause for non-rectification will be applicable as per tender conditions(refer clause no 18)
- In the event of any delay in rectification of a defect or replacement of any defective goods, when the equipment has remained non functional during the warranty period, the warranty of the equipment shall stand extended by number of days the equipment has remained non functional from the date such rectified / replaced goods starts functioning to the satisfaction of the TIA.
- If the supplier, having been notified, fails to respond to take action to repair or replace the defect(s) within 48 hours in metro cities and 96

hours in hard to reach areas on a 24(hrs) X 7 (days) X 365 (days) basis, penalty shall be imposed as per clause no 18 for defective units/goods, the TIA may proceed to take such remedial action(s) as deemed fit by the TIA, at the risk and expense of the supplier and without prejudice to other contractual rights and remedies, which the TIA may have against the supplier.

- During Warranty period, the supplier is required to visit at each consignee's site at least once in 3 months commencing from the date of the installation for preventive maintenance of the goods.
- During Warranty period, the supplier is required to visit at each consignee's site at least once in 6 months commencing from the date of the installation for Calibration of the goods
- The Supplier along with its Indian Agent shall always accord most favoured client status to the TIA vis-à-vis its other Clients/TIAs of its equipment/machines/goods etc. and shall always give the most competitive price for its machines/equipment supplied to the TIA/Consignee.

(A) Assignment

The Supplier shall not assign, either in whole or in part, its contractual duties, responsibilities and obligations to perform the contract, except with the TIA's prior written permission.

(B) Sub Contracts

B.1 The Supplier shall notify the TIA in writing of all sub contracts awarded under the contract if not already specified in its tender. Such notification, in its original tender or later, shall not relieve the Supplier from any of its liability or obligation under the terms and conditions of the contract.

B.2 Sub contract shall be only for bought out items and sub-assemblies.

B.3 Sub contracts shall not be made with a party who has been convicted / or a criminal case filed against it or pending in any court of India by any department of the government under Prevention of Corruption Act or for cheating / defrauding government / embezzlement of government fund or for any criminal conspiracy in the said matters.

19.2 If any defect is not remedied within a reasonable time the purchaser may proceed to procure such defective quantities at the Supplier's risk and cost from other tenderer or open market, but without prejudice to may other rights which the purchaser may have against the contract in respect of such defects.

20. DEDUCTION & OTHER PENALTIES ON ACCOUNT OF DELAYS/ DEFAULT/ TERMINATION/ PART CANCELLATION/SHORT CLOSURE:

- 20.1 If the goods do not conform to tender specifications, the Tenderer will be liable for relevant action under the existing laws and the entire stock has to be taken back by the Tenderer within a period of 30 days of the receipt of the letter from the CMSS. Such stock shall be taken back at the expense of the Tenderer. The CMSS has the right to destroy such "NOT OF STANDARD QUALITY GOODS" if the Tenderer does not take back the goods within the stipulated time. The CMSS will arrange to destroy the "NOT OF STANDARD QUALITY GOODS" after the expiry of 30 days mentioned above without further notice, and shall also collect demurrage charges calculated at the rate of 0.5% per week on the value of the drugs/goods rejected till such time stipulated.
- 20.2 The CMSS will be at liberty to terminate, without assigning any reasons thereof, the contract either wholly or in part or short closed on 30 days notice. The Tenderer will not be entitled for any compensation whatsoever in respect of such termination besides forfeiture of Security Deposit and purchaser reserves the right to purchase balance-unsupplied item at the risk and cost of the defaulting vendor.
- 20.3 For infringement of the stipulations of the contract, for non performance/compliance of contractual terms or for other justifiable reasons, the contract may be terminated either wholly, or in part or short closed. by the CMSS and the Tenderer shall be liable to pay for all losses sustained by the CMSS in consequence of the termination which may be recovered personally from the Tenderer or from his properties, as per rules besides forfeiture of Security Deposit.
- 20.4 In the event of making Alternative Purchase, as specified in in Clause 13(f), Clause 14.2(a), Clause 16.7 and other clauses herein, penalty will be imposed on the supplier. The excess expenditure over and above contracted prices incurred by the CMSS, in making such purchases from any other sources or in the open market or from any other Tenderer who has quoted higher rates and other losses sustained in the process, shall be recovered from the Security Deposit or from any other money due and become due to the supplier and in the event of such amount being insufficient, the balance will be recovered personally from the supplier as per rules.

- 20.5 In all the above conditions, the decision of the CMSS shall be final and binding.

21. FALL CLAUSE

- (i) Bidder undertakes and certifies that prices quoted are not higher than currently charged by it to institutional supplies/wholesalers/ any Govt. organisations/Charitable trust organisation for matching purchase terms/conditions. It is distinctly understood by bidder that in case of supply to such bodies (as detailed above) at price lower than the CMSS contracted price (within the contracted period specified) will immediately invite the reduction in the rates of the contract.
- (ii) Breach of above, whenever comes to notice of CMSS, will be viewed seriously and action will be taken against the supplier which may include forfeiture of Security Deposit (SD) along with recovery of price differential, termination of the contract and disqualification from participating in future tender for the product for a suitable period. Decision of purchaser will be final and binding in this regard.

22. SAVING CLAUSE

No suit, prosecution or any legal proceedings shall lie against the Tender Inviting Authority or any person for anything that is done in good faith or intended to be done in pursuance of the tender.

23. PROHIBITION OF INFLUENCING CMSS BY THE BIDDER:

- (i) No bidder shall contact or influence the CMSS or its employees on any matter relating to its bid from the time of bid opening to the time the contract is awarded.
- (ii) Any effort by a bidder to influence the CMSS in the bid evaluation, bid comparison or contract award decisions may result in rejection of the bidder's bid.
- (iii) The bidder shall not make any attempt to establish unsolicited and unauthorized contact with the Tender Accepting Authority, Tender Inviting Authority or Tender Evaluation Committee after opening of the bids and prior to the notification of award and any attempt by any bidder to bring to bear extraneous pressures on the Tender Accepting Authority, Inviting Authority or Tender Evaluation Committee, shall be sufficient reason to disqualify the bidder.

- (iv) Notwithstanding anything contained in clause (iii) above the Tender Inviting Authority or the Tender Accepting Authority, may seek bonafide clarifications from bidders relating to the bids submitted by them during the evaluation of bids.

24. RESOLUTION OF DISPUTES

- (i) The CMSS and the supplier shall make every effort to resolve, amicably by direct informal negotiation any disagreement or dispute arising between them under or in connection with the contract.
- (ii) In case of a dispute or difference arising between the CMSS and a supplier relating to any matter arising out of or connected with this agreement, such dispute or difference shall be settled in accordance with the Arbitration and Conciliation Act, 1996. The venue of arbitration shall be New Delhi.

25. JURISDICTION

In the event of any dispute arising out of the tender such dispute would subject to the jurisdiction of the Civil Court within the city of New Delhi only.

Annexure - I**CENTRAL MEDICAL SERVICES SOCIETY****NEW DELHI- 110021****Online Tender of Empanelment for Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years****LIST OF PRODUCT& THEIR TECHNICAL SPECIFICATIONS**

Sch. No.	Item Name	Total Tentative Quantity	Unit	Detailed Technical Specifications of the item	Delivery Schedule (Destination Basis)
I	Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years- 11 Nos.- Kits for HCV RNA and HBV DNA	277200 HBV DNA, HCV RNA Tests reportable over a period of 3 years (92400 Tests reportable / year)	Nos.	Annex IA	Delivery of Equipment/ Instruments- 75 days from LOA and 30 days for installation & commissioning the equipment from date of handing over the site. Delivery of Kit- 75 days from PO for quantity beyond limits of stock (as per clause no 14.3.g), For quantity within stock limit, delivery period- 7 days from date of confirmation by email.

Delivery Terms:

(a) The delivery shall be on DDP (Destination basis).

(b) The delivery shall be within 75 days from the date of LOA and 30 days for installation & commissioning the equipment from date of handing over the site. (lot wise, if any).

Annexure 1A – Technical Specification

Annexure 1B – Consignee Location

DESCRIPTION AND SPECIFICATION**Schedule –I****Technical Specifications of QUANTITATIVE VIRAL LOAD TESTING PLATFORM FOR HBV AND HCV**

- 1: Closed HCV and HBV nucleic acid extraction and Viral Load Testing Platform using human whole blood derived serum/plasma
- 2: Technology Platform should be based on real time PCR chemistry like TaqMan, molecular beacon probes, SYBR Green and all other fluorescent dye based chemistries and should be calibrated for multiple dyes.
- 3: The Assay should be FDA-approved and CE-IVD marked. The quoted test shall be licensed to bidder in India by DCGI(I).
- 4: The limit of detection must be -
 - HCV RNA: 15 IU/ml or lower for 0.5 ml input
 - HBVDNA : 20 IU/ml or Lower for 0.5 ml input
- 5: Dynamic range of the quoted assay shall be
 - HCV: 15 – 1 X 10⁸ IU/mL or better
 - HBV: 20 – 1.7 x 10⁸ IU/ml or better
- 6: Specificity of the assay shall be more than equal to 99.5%
- 7: Genotype coverage: Assay shall cover HCV genotypes 1 to 6 & HBV genotype A to H
- 8: The assay shall have inclusion of reagents/enzymes (either built in or external addition) to remove the carry over contamination by degrading of Nucleic Acid templates amplified in previous runs.
- 9: Capable of completing a cycle of extraction and testing within 8 hrs with automated sample extraction and the testing should have a throughput of up to 96 specimens in batches of 24 to 96 for HCV and at least 24 to 48 for HBV on one instrument.
- 10: The platform shall have barcode system for specimen tube identification.**

General Specifications:

1. The bidder will provide installation qualification, operational qualification and performance qualification at the time of installation with all certificates and log book for maintenance of the equipment at no extra cost.
2. The agency shall provide an EQAS on a 6-monthly basis provided by any ISO approved 17043 provider which should be part of the package with two sets of proficiency testing panels for HBV DNA and HCV RNA.
3. Yearly preventive maintenance and calibration, shall be the responsibility of the bidder as per requirement of quoted system/assay. Timely upgradation of the facility with respect to hardware/ software/reagent/workflow shall be provided free of cost.
4. The manufacturer should provide 95% uptime of the HCV & HBV viral load testing facility
5. The bidder shall provide free of cost replacement of the viral load platform in case new model or upgraded version is released by the manufacturer.
6. The bidder shall submit the details of engineer and application support team
7. The bidder will be responsible for training of laboratory staff on operation of equipment at the time of installation and subsequently every year for optimal utilization of the equipment. The cost of refresher trainings will be borne by the government but the technical aspects will have to be dealt with by the vendor.
8. The bidder shall set up the operational facility as per the requirement of proposed system and assay such as refrigeration (4/-20/-80 degree Celsius), centrifuge, Air conditioner, biosafety cabinets, HEPA filters, Pipettes or any other equipment/consumables required for running of quoted assay. The same shall be calibrated by the bidder as per requirements of NABL.
9. Compatible (5 to 10 KVA) UPS for nucleic acid extraction and testing equipment with back-up to complete one cycle atleast..
10. Electrical Requirement:
 - a) Output voltage: 220 volts +/- 10% volts. Input voltmeter and ampere meter. Protection: high-low voltage cut-off, overload and short circuit protection.

- b) Electrical safety: Equipment meets electrical safety specifications such as that of IEC (Class I)
11. Downtime commitment to be restricted to maximum period of 48 hours in metro cities and 96 hours in hard to reach areas (working days) and provide alternative to ensure uninterrupted testing services. Punitive actions shall be taken in case of failure to maintain the desirable downtime.
12. Satisfactory report from at least three government sites which have the equipment installed in last three years.
13. Installation of Equipment: Equipment to be installed by certified or qualified personnel.
14. Service/Maintenance: The supplier shall have a functioning after-sale-service on PAN India basis. The supplier should provide services at district consignee site.
15. The technical bids should clearly mention make, model number, details specification, quantity of each component offered including the compliance. The bid should be duly supported by original catalogue, brochures of the manufacturer and relevant parts proposed to be supplied. Any additional cost towards power cables or any electric accessories to be borne by suppliers. The equipment should be fully functional with the standard accessories.
16. All the accessories should be provided and installed with the equipment.
17. Equipment should have quality certificate as mentioned in respective technical specifications.
18. The supplier shall install, calibrate and validate the equipment at the location specified in purchase order at the supplier cost. All control and calibration costs of reagent/ equipment shall be borne by the manufacturer/ Supplier.
19. The supplier shall provide brand new machine only.
20. The quote should be inclusive of comprehensive training in the equipment supplied as required.
21. The quote should also include comprehensive warranty for a minimum period of 3 year

22. All electrical parts and control panel shall be conforming to and shall be done as per relevant BIS and any other standard stipulated by electrical inspectorate.
23. Utility requirements (Quality, Qty., rating etc) for the equipments shall be indicated in the bid.
24. Calibration certificate with traceability to National Standards shall be supplied for all the instruments coming under the scope of supply of supplier. QA report should be provided at the time of installation and during contract period free of cost.
25. The bidder should attach to their bid detailed specification, catalogues and data sheet and other details of the equipments quoted by them.
26. The spares for the equipment shall be available for at least 5 years from the date of supply.
27. Warranty- 3 Years comprehensive warranty shall be provided free of cost of the equipment. All software updates should be provided free of cost during warranty/ contract period. All items covered under warranty/ Contract period, As per warranty clause.
28. Three months buffer stock is required at all points in time subject to kit clearance in case of imported kits within 6 weeks of raising a demand.
29. The manpower for operating the equipment will be provided by the Institute.
30. The electricity and water connection and monthly consumption bills shall be borne by the Institute.
31. Inspection of site- Every bidder/ Tenderer is expected to inspect the site of the proposed work and acquaint himself with the site conditions, approaches etc. Before quoting his rates. No claim whatsoever should be entertained later on the plea of any difficulties involved in the execution of work, which was or was not foreseen by the tenderer.
32. The supplied instruments and accessories under this project remain the property of the successful bidder during and after the contract period.
33. Any deviation from the bid documents shall be clearly indicated.

Wherever possible, the reagent rental models, for the viral load platforms, will be preferred.

The committee approved the technical specifications of the quantitative viral load testing platform for HBV and HCV and agreed for procurement of the same under reagent rental model wherein the kits procured for HBV DNA and HCV RNA would be compatible with the platform.

CHECKLIST FOR TECHNICAL SPECIFICATION Annexure 1AA

Technical Specifications of QUANTITATIVE Viral Load Testing Platform for HBV AND HCV	Technical Compliance- Make and Model quoted item	Remarks
1: Closed HCV and HBV nucleic acid extraction and Viral Load Testing Platform using human whole blood derived serum/plasma		
2: Technology Platform should be based on real time PCR chemistry like TaqMan, molecular beacon probes, SYBR Green and all other fluorescent dye based chemistries and should be calibrated for multiple dyes.		
3:The Assay should be FDA-approved and CE-IVD marked. The quoted test shall be licensed to bidder in India by DCGI(I).		
4: The limit of detection must be - HCV RNA: 15 IU/ml or lower for 0.5 ml input, HBVDNA : 20 IU/ml or Lower for 0.5 ml input		
5: Dynamic range of the quoted assay shall be - HCV: 15 – 1 X 10 ⁸ IU/mL or better, HBV: 20 – 1.7 x 10 ⁸ IU/ml or better		
6: Specificity of the assay shall be more than equal to 99.5%		
7: Genotype coverage: Assay shall cover HCV genotypes 1 to 6& HBV genotype A to H		
8: The assay shall have inclusion of reagents/enzymes (either built in or external addition) to remove the carry over contamination by degrading of Nucleic Acid templates amplified in previous runs.		

9: Capable of completing a cycle of extraction and testing within 8 hrs with automated sample extraction and the testing should have a throughput of up to 96 specimens in batches of 24 to 96 for HCV and at least 24 to 48 for HBV on one instrument.		
10: The platform shall have barcode system for specimen tube identification		
General Specifications:		
1. The bidder will provide installation qualification, operational qualification and performance qualification at the time of installation with all certificates and log book for maintenance of the equipment at no extra cost.		
2. The agency shall provide an EQAS on a 6-monthly basis provided by any ISO approved 17043 provider which should be part of the package with two sets of proficiency testing panels for HBV DNA and HCV RNA.		
3. Yearly preventive maintenance and calibration, shall be the responsibility of the bidder as per requirement of quoted system/assay. Timely upgradation of the facility with respect to hardware/software/reagent/workflow shall be provided free of cost.		
4. The manufacturer should provide 95% uptime of the HCV & HBV viral load testing facility		
5. The bidder shall provide free of cost replacement of the viral load platform in case new model or upgraded version is released by the manufacturer.		

6. The bidder shall submit the details of engineer and application support team		
7. The bidder will be responsible for training of laboratory staff on operation of equipment at the time of installation and subsequently every year for optimal utilization of the equipment. The cost of refresher trainings will be borne by the government but the technical aspects will have to be dealt with by the vendor.		
8. The bidder shall set up the operational facility as per the requirement of proposed system and assay such as refrigeration (4/-20/-80 degree Celsius), centrifuge, Air conditioner, biosafety cabinets, HEPA filters, Pipettes or any other equipment/consumables required for running of quoted assay. The same shall be calibrated by the bidder as per requirements of NABL.		
9. Compatible (5 to 10 KVA) UPS for nucleic acid extraction and testing equipment with back-up to complete one cycle atleast..		
10. Electrical Requirement: a) Output voltage: 220 volts +/- 10% volts. Input voltmeter and ampere meter. Protection: high-low voltage cut-off, overload and short circuit protection. b) Electrical safety: Equipment meets electrical safety specifications such as that of IEC (Class I)		

11. Downtime commitment to be restricted to maximum period of 48 hours in metro cities and 96 hours in hard to reach areas (working days) and provide alternative to ensure uninterrupted testing services. Punitive actions shall be taken in case of failure to maintain the desirable downtime.		
12. Satisfactory report from at least three government sites which have the equipment installed in last three years.		
13. Installation of Equipment: Equipment to be installed by certified or qualified personnel.		
14. Service/Maintenance: The supplier shall have a functioning after-sale-service on PAN India basis. The supplier should provide services at district consignee site.		
15. The technical bids should clearly mention make, model number, details specification, quantity of each component offered including the compliance. The bid should be duly supported by original catalogue, brochures of the manufacturer and relevant parts proposed to be supplied. Any additional cost towards power cables or any electric accessories to be borne by suppliers. The equipment should be fully functional with the standard accessories.		
16. All the accessories should be provided and installed with the equipment.		
17. Equipment should have quality certificate as mentioned in respective technical specifications.		

18. The supplier shall install, calibrate and validate the equipment at the location specified in purchase order at the supplier cost. All control and calibration costs of reagent/ equipment shall be borne by the manufacturer/ Supplier.		
19. The supplier shall provide brand new machine only.		
20. The quote should be inclusive of comprehensive training in the equipment supplied as required.		
21. The quote should also include comprehensive warranty for a minimum period of 3 year		
22. All electrical parts and control panel shall be conforming to and shall be done as per relevant BIS and any other standard stipulated by electrical inspectorate.		
23. Utility requirements (Quality, Qty., rating etc) for the equipments shall be indicated in the bid.		
24. Calibration certificate with traceability to National Standards shall supplied for all the instruments coming under the scope of supply of supplier. QA report should be provided at the time of installation and during contract period free of cost.		
25. The bidder should attached to their bid detailed specification, catalogues and data sheet and other details of the equipments quoted by them.		
26. The spares for the equipment shall be available for at least 5 years from the date of supply.		

27. Warranty- 3 Years comprehensive warranty shall be provided free of cost of the equipment. All software updated should be provided free of cost during warranty/ contract period. All items covered under warranty/ Contract period, As per warranty clause.		
28. Three months buffer stock is required at all points in time subject to kit clearance in case of imported kits within 6 weeks of raising a demand.		
29. The manpower for operating the equipment will be provided by the Institute.		
30. The electricity and water connection and monthly consumption bills shall be borne by the Institute.		
31. Inspection of site- Every bidder/ Tenderer is expected to inspect the site of the proposed work and acquaint himself with the site conditions, approaches etc. Before quoting his rates. No claim whatsoever should be entertained later on the plea of any difficulties involved in the execution of work, which was or was not foreseen by the tenderer.		
32. The supplied instruments and accessories under this project remain the property of the successful bidder during and after the contract period.		
33. Any deviation from the bid documents shall be clearly indicated.		
Wherever possible, the reagent rental models, for the viral load platforms, will be preferred.		

The committee approved the technical specifications of the quantitative viral load testing platform for HBV and HCV and agreed for procurement of the same under reagent rental model wherein the kits procured for HBV DNA and HCV RNA would be compatible with the platform.		
--	--	--

**WHETHER THE PRODUCTS OFFERED ARE IN ACCORDANCE WITH
THE SPECIFICATIONS AND REQUIREMENTS**

YES/ NO

ANY DEVIATION MUST BE LISTED BELOW

Annexure 1B

The details of Consignee Location are given below:-

1. All India Institute of Medical Sciences (AIIMS), New Delhi.
2. Burdwan Medical College, Burdwan, West Bengal.
3. Gandhi Medical College (GMC), Bhopal, Madhya Pradesh.
4. Gujrat Medical Education and Research Society (GMERS), Sola, Ahmedabad, Gujrat.
5. Kasturba Gandhi Medical University (KGMU), Lucknow, Uttar Pradesh.
6. Madras Medical College (MMC), Chennai, Tamil Nadu.
7. Osmania Medical College, Hyderabad, Telangana.
8. Regional Institute of Medical Sciences (RIMS), Imphal, Manipur.
9. Rajendra Institute of Medical Sciences (RIMS), Ranchi, Jharkhand.
10. Sher I Kashmir Institute of Medical Sciences (SKIMS), Srinagar, Jammu & Kashmir.
11. National Centre for Disease Control (NCDC), Delhi.

CMSS reserve to right the change the consignee at any time if required.

Annexure-II**TENDER FORWARDING LETTER**
(To be given on Company Letter Head)

Date:

To,
DG&CEO,
Central Medical Services Society
2nd Floor, Vishwa Yuvak Kendra,
Pt. Uma Shankar Dikshit Marg, Teen Murti Marg,
Opposite Police Station Chankaya Puri, New Delhi-110021

Sub: Acceptance of Terms& Conditions of Tender.**Tender No: CMSS/PROC/ 2019-20/ NPSVH/006****Name of Tender: - Online tender of empanelment for quantitative Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three years.**

Dear Sir,

1. I/We have downloaded/obtained the tender document(s) for the above mentioned 'Tender/Work' from the web site(s) namely:

as per your advertisement, given in the above mentioned website(s).

2. I/We hereby certify that I/we have read the entire terms and conditions of the tender Documents from Page No. _____ to _____ (Including all documents like annexure(s), schedule(s), etc.), which form part of the contract agreement and I/we shall abide hereby by the terms /conditions /clauses contained therein.

3. The corrigendum(s) issued from time to time by your department/organization too has also been taken into consideration, while submitting this acceptance letter.

4. I / We hereby unconditionally accept the tender conditions of above mentioned tender document(s)/ corrigendum(s) in its totality/entirety.

5. I/We do hereby declare that our Firm has not been blacklisted/debarred by any Govt. Department/Public sector undertaking.

6.1 I/We hereby declare that bid will remain valid for a period of 150 days after opening of Tender bid/packet1

7. I/We certify that all information furnished by our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including the forfeiture of the full said earnest money deposit absolutely.

Yours Faithfully,

(Signature of the Tenderer ,with Official Seal

Annexure-III**DETAILS OF E.M.D. SUBMITTED**

We herewith submit the E.M.D. of Rs. _____ in the form of **Account Payee Demand Draft, FD Receipt, Banker's Cheque, RTGS/ NEFT and Bank Guarantee** vide document Ref. No. _____ Dated: _____ Bank: _____ in favour of **Central Medical Services Society** for the following items of Quantitative Viral Load Platform for HCV RNA and HBV DNA under reagent rental model for three years:-

Sch No.	Name of the Product/ Item	UOM	Quantity in Bid	Amount of EMD Payable (in INR) for 100% quantity	Quantity Quoted	% of the Bid Quantity	Amount of EMD
1	3	4	5	6	8	9	10
I.	Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years- 11 Nos.- Kits for HCV RNA and HBV DNA	Nos	277200 HBV DNA, HCV RNA Tests reportable over a period of 3 years (92400 Tests reportable / year)	38,80,000			

Annexure-IV**PROFORMA FOR PERFORMANCE STATEMENT****(FOR A PERIOD OF LAST 3 YEARS)**

Name of Bidder with Address_____

Name of Manufacturer with Address_____

Ref Tender No _____

Sr. No. of the Product _____

Name of the Product _____

Order placed by (full address of TIA/Consignee)	Year	Order number and date	Description and quantity of ordered goods and services	UOM	Value of order (Rs.)	Date of completion of Contract		Remarks indicating reasons for delay if any	Have the goods been functioning Satisfactorily (attach documentary proof)**
						As per contract	Actual		
1	2	3	4	5	6	7	8	9	10

Note:

1. Proof for the manufacturing (BMR) / importing of the items quoted to be produced, if demanded.
2. Copies of purchase orders in support of performance statement may be uploaded along with this Annex-IV.

Signature of Tenderer**Name in Capitals****Date:****Seal:****Signature of Auditor/ Chartered Accountant****Name in Capitals****Date****Seal**

Annexure-V**ANNUAL TURN OVER STATEMENT**

The Annual Turnover (Sales) of M/s. _____ for the past two years are given below and certified that the statement is true and correct.

S. No.	Financial Year	Turnover in Lakhs (Rs)
1.	2017-2018	-
2.	2018-2019	-
Total - Rs. _____ Lakhs.		

Average Turnover Per Annum in the last two years mentioned above - Rs. _____ Lakhs.

Date:

Seal:

Signature of Auditor/
Chartered Accountant
(Name in Capital)

Annexure– VI**LIST OF ITEMS QUOTED & THEIR PRODUCTION CAPACITY****1. Name of the firm :****2. Address of the firm as given in Drug license/Manufacturing License :****3. Details of Endorsement for all products quoted :**

Sch No	Item Code	Drug/Goods Name	UOM	Quantity Tendered	Quantity quoted	Manufacturing Capacity	Quantity Manufactured			Average Quantity Manufactured	Percentage Earmarked to CMSS (6/8*100)
							2015-16	2016-17	2017-18		
1	2	3	4	5	6	7	8A	8B	8C	9	10
1		Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years-11 Nos.- Kits for HCV RNA and HBV DNA	Nos.	277200 HBV DNA, HCV RNA Tests reportable over a period of 3 years (92400 Tests reportable / year)							
				TOTAL							

Date:

Authorized Signatory:

Annexure – VII**CHECK LIST**

Packet 1	Pg. No				
1. Checklist – Annex-VII		Yes		No	
2. EMD in the form of DD/ BG as per Annex-III / MSME certificate for exemption		Yes		No	
3. Certificate by MSME/ SSI units in support of being a MSE/ SSI unit.		Yes		No	
4. Duly attested photocopy of License for the product duly approved by the Licensing Authority for each and every product quoted.		Yes		No	
5. Authorization letter nominating a responsible person of the tenderer to transact the business with the Tender inviting Authority.		Yes		No	
6. Purchase Order Copy		Yes		No	
7. Non Conviction Certificate issued by the Drugs Controller / Competent Authority		Yes		No	
8. Quality Certificate		Yes		No	
9. Annual Turnover Statement for 2 Years (Annex-V)		Yes		No	
10. Copies of Balance Sheet & Profit & Loss Account for last two years		Yes		No	
11. Proforma for Performance Statement (Annex-IV)		Yes		No	
12. List of items quoted and their production capacity – Annex-VI		Yes		No	
13. Mandate Form for RTGS Annex-XII		Yes		No	

14. The Tender document signed by the tenderer in all pages with office seal.		Yes	No
15. Service Centre Details (Annexure XX)		Yes	No
16. Product Catalogue, Literature, Data Sheet		Yes	No
17. Undertaking that Firm is not being blacklisted or debarred from any Govt. Agency		Yes	No
18. Notarized Undertaking by MSE (Annex – VIII)		Yes	No
19. No Deviation Certificate (Annexure XVII)		Yes	No
20. Manufacturer Authorization Form (Annex – XIX)/Self Declaration for Manufacturer or subsidiary		Yes	No
21. GST Registration Certificate		Yes	No
22. Certificate of Incorporation in case of companies/copy of partnership deed in case of partnership firm/ Declaration in case being a proprietary firm.		Yes	No
23. Copy of PAN Card and ITR		Yes	No

Annexure-VIII**NOTARISED UNDERTAKING BY MSE COMPANIES****(In 20- Rupees stamp paper)**

I _____, S/o _____, Proprietor / Partner / Managing Director of _____ (Proprietary Concern / Firm / Company Ltd.) execute this Undertaking for myself and on behalf of _____ (Proprietary Concern / Firm / Company Ltd.).

2. Whereas, CMSS (Tender Inviting Authority) has invited Tender for supply of Equipments, Drugs and medicines for the year 2019-2020 and in pursuant to the conditions in the tender documents. M/s _____ (Proprietary Concern/ Firm / Company Ltd.), _____ having its Office at _____ is exempted from payment of Earnest Money Deposit as indicated in the Annexure-II of tender document.

3. And whereas, in pursuant to the conditions in Clause Nos. 9.2, 9.3 & 9.4 of the tender, the Earnest Money Deposit can be forfeited by the Tender Inviting Authority in case of violation of any of the conditions and for non-performance of the obligation under tender document.

4. In consideration of exempting M/s. _____ (Proprietary Concern/ Firm / Company Ltd.) from payment of Earnest Money Deposit as indicated in the Annexure-II of tender document, I undertake to pay the said sum without any demur on receipt of demand issued by the tender inviting authority.

M/s _____

For Self and Firm / Company Ltd.

Signature and Seal

Witness:-

(1)

(2)

Annexure-IX**Central Medical Services Society**

2nd Floor, Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti Marg,
Opposite Police Station Chankaya Puri, New Delhi-110021

Tel: 011-21410905/06, Fax: 011-21410849

Email: cmss.procurement@gmail.com

LETTER OF ACCEPTANCE

No: CMSS/PROC/2019-20/NPSVH/AL/006

Date _____

To,

M/s _____

Address: _____

Attn: _____

Phone: _____

Email _____

(Kind Attn: _____ (Name), _____ Designation)

Sub: Acceptance of Tender of empanelment for quantitative Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three years.

Ref: 1) CMSS Tender No. **CMSS/PROC/2019-20/NPSVH/006** opened on _____

2) Your Ref. No. _____ dated _____ in response to above mentioned tender.

Dear Sir,

I am pleased to inform you that your offer in response to above mentioned tender for supply of kits for HCV RNA, HBV DNA test has been accepted for following items:

Sch No.	Items Description	Quantity	Unit	Per Unit Price In (Rs.)	GST (%)	GST (Rs)	Transport & any other charges (Rs.)	Total Per unit price (all incl) (Rs.)
1	Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years- 11 Nos.- Kits for HCV RNA and HBV DNA	277200 HBV DNA, HCV RNA Tests reportable over a period of 3 years (92400 Tests reportable / year)	Nos					

- You are requested to deposit Security Deposit Rs. 10,00,000/- by **NEFT/ RTGS/ Bank Guarantee/Demand Draft/ Banker's Cheque** and enter into an Agreement, as per the format given in **Annex-X** of the Tender document, within 15 days from the date of receipt of this letter.
- Detailed Agreement including consignee list shall be forwarded after receipt of Security Deposit.
- You are intimated that in anticipation of your acceptance to this LOA and submission of Security Deposit as above we are processing purchase order for supply of _____ quantity to be supplied within 75 days from the date of issue of this LOA and 30 days for installation & commissioning from the handing over site. Kindly take appropriate necessary action in this regard.

5. Please convey your acceptance to this LOA within 03 days of issue, else it will be presumed that you are not keen to accept the LOA and CMSS may proceed for allocation of quantity to other bidder and with other actions stipulated in referred Tender document.
6. All other terms and conditions will be as per Tender document no. CMSS/PROC /2019-20/NPSVH/006 and subsequent amendments to it.

Yours faithfully,

(Sh. S.A. Khan)

General Manager (Procurement)

Encl: - Annexure A: List of manufacturing license and site address.

Annexure A to Acceptance Letter No:

Supplier: M/s _____

Annexure - A

LIST OF MANUFACTURING LICENSES & SITE ADDRESSES					
Sr. No.	Item Code	Item Description	Manufacturing Site Address	Manufacturing License No.	Remarks
1					
2					
3					

Annexure – X**LONG TERM AGREEMENT (LTA) NO.:CMSS/PROC/2019-20/NPSVH/LTA/006****E- STAMP CERTIFICATE NO.:****LTA Validity: From _____ to _____****TERMS OF AGREEMENT**

THIS AGREEMENT made the..... day of, year between Central Medical Services Society, 2nd Floor, Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti Marg, Opposite Police Station Chankaya Puri, New Delhi-110021 (here in after "the Purchaser") of the one part and (Name of Supplier) of..... (Address and Country of Supplier) (Here in after called "the Supplier") of the other part:

WHEREAS the Purchaser is desirous that certain Goods and ancillary services viz; empanelment for **quantitative Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three years** in the Tender Reference No. **CMSS/PROC/2019-20/NPSVH/006**, Dt..... (Brief Description of Goods and Services) and has accepted a bid by the Supplier for the supply of those goods and services for the sum of..... (Contract Price in Words and Figures) (Hereinafter called "the Contract Price").

WHEREAS the Supplier confirms that it is qualified, ready, willing and able to supply/services the empanelment for quantitative Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three years, in accordance with the terms and conditions of this Agreement.

1. DEFINITIONS

Commencement Date means _____

Expiry Date means _____

Products, in singular form Product, means the item(s), as described and detailed above, provided by the Supplier to CMSS from time to time pursuant to this agreement.

Tender means Tender No. Tender No: **CMSS/PROC/2019-20/NPSVH/006** from CMSS to the Supplier, to quote for the cost of supply of the Products to CMSS.

Long Term Agreement, as abbreviated to Agreement or LTA, means this Agreement between the Parties, to provide Products, including its Annexes, however with due consideration of the order of precedence among the LTA and individual Annexes.

Parties means CMSS and the Supplier, their successors and assigns and where not repugnant to the context, their servants or agents.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:**1. LTA DOCUMENTS:**

The following documents shall be deemed to form and be read and construed as part of this Agreement, viz.:

- (a) This LTA
- (b) The Notice Inviting Tender
- (c) Terms and Conditions of Tender Document as given in Tender No: **CMSS/PROC/2019-20/NPSVH/006** dt. _____
- (d) The Minutes of Pre-Bid meeting and corrigendum issued.
- (e) Schedule of Requirement.
- (f) The Technical Specification
- (g) The Supplier's Offer including Enclosures, Annex etc.
- (h) Any other document listed in the supplier's bid and replies to queries, clarifications issued by the purchaser, such confirmations given by the tenderer which are acceptable to the purchaser and the entire Addendum issued as forming part of the contract.
- (i) The Letter of Acceptance issued by the purchaser.

2. PURPOSE OF LTA:

2.1 The Purchaser hereby covenants to pay the Supplier in consideration of the provision of the goods, the Contract Price at the times and in the manner prescribed by this Agreement.

2.2 Brief particulars of the Products or goods which shall be supplied / provided by the Supplier are as under.

Sch. No.	Items Description	Quantity	Unit	Per Unit Price (Rs.)	GST (%)	GST (Rs)	Transport & any other charges (Rs)	Rate Per Unit (Landed Price) (Rs)	Grand Total (Rs)
Grand Total									

2.3 The supplier agrees that his supplies are subject to terms and conditions details contained in LTA documents mentioned above. The supplier appreciates that the supplies are meant for public health system in the country and hence will agree to supply the goods of good quality as per standards in a timely manner as specified as per tender terms and conditions. The supplier has already given its no deviation (clause-by-clause compliance) for the subject terms and conditions.

3 . Manufacturing License and Site

License and Site Address: As per Annexure A.

IN WITNESS where of the parties here to have caused this Agreement to be executed in accordance with their respective laws the day and year first above written.

Signed, Sealed and Delivered by the said..... (For the Purchaser)
in the presence of

Signature
Name
Address

Signed, Sealed and Delivered by the Said (For the Supplier)
in the presence of

Signature
Name Address

Annexure A to LTA No:
Supplier: M/s

Annexure - A

LIST OF MANUFACTURING LICENSES & SITE ADDRESSES					
Sr. No.	Item Code	Item Description	Manufacturing Site Address	Manufacturing License No.	Remarks
1					
2					
3					

Annexure - XI**CENTRAL MEDICAL SERVICES SOCIETY**

Ministry of Health & Family Welfare
(Government of India)

2nd Floor, Vishwa Yuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti Marg,
Opposite Police Station Chankaya Puri, New Delhi-110021, India

PURCHASE ORDER**PO No: CMSS/PROC/ 2019-20/NPSVH/PO/006****Dated: _____**

To,

M/s _____

Address: _____

Attn: _____

Phone: _____

Email _____

Subject: Purchase Order for supply/ services of empanelment for quantitative Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three years.

Ref : Long Term Agreement No: CMSS/PROC/ 2019-20/NPSVH/LTA/006 dated _____

Dear Sir,

Please supply following quantities for the items specified as per the technical specifications and terms & conditions of the Long Term Agreement referred above:

Sr.No.	Item Code	Item Description	Quantity Accepted by the Purchaser	Unit	Per Unit Price (Rs)	GST (%)	GST (Rs)	Transportation Charges (Rs)	Rate Per Unit (Landed Price)(Rs)	Total Value (Rs)	Destination
1											As per Annex-A
2											As per Annex-A
3											As per Annex-A

- All the Terms & Conditions of the Agreement signed by you on acceptance of your tender are applicable.
- Delivery Period : 75 Days from the date of this Letter of Acceptance and 30 days for installation and commissioning the equipment from handing over the site.

3. Manufacturing license as per Annexure A and site address as per Annexure B.
4. Payment Terms: The payment will be made by the Institute based as per invoice to be submitted by vendor on monthly basis. All control & calibration costs for reagent/equipment shall be borne by the manufacturer. The payment will be made on a monthly basis with in 30 days after submission of appropriate documents, verification as per rules.

Enclosed site allocation

(Sh. S.A. Khan)
General Manager (Procurement)

Copy to :

1. General Manager (LSC), CMSS
2. General Manager (QA), CMSS
3. Asst. General Manager (Finance), CMSS
4. All Consignees

Annexure A to PO No:

Supplier: M/s

Annexure - A

CONSIGNEE-LIST						
Sr. No.	Item Description	Consignee Location	Consignee Address	Quantity	UOM	Remarks
1						
2						
3						

Annexure-B

Annexure B to PO No:

Supplier: M/s

LIST OF MANUFACTURING LICENSES & SITE ADDRESSES					
Sr. No.	Item Code	Item Description	Manufacturing Site Address	Manufacturing License No.	Remarks
1					
2					
3					

Annexure -XII**MANDATE FORM**

01	Company Name	
02	Postal Address of the company with Telephone No., Fax No. and Mail ID.	
03	Name of the Managing Director / Director / Manager Mobile No. / Phone No. E-mail ID.	
04	Name and Designation of the authorized company official Mobile No. E-mail ID	

Date:

Company Seal

Signature

Place:

(Name of the person signing & designation)

Mandate Form contd..

01	Name of the Bank. Branch Name& address. Branch Code No. Branch Manager Mobile No. Branch Telephone no. Branch E-mail ID	
02	9 digit MICR code number of the bank and branch appearing on the MICR cheque issued by the bank.	
03	IFSC code of the Branch	
04	Type of Account (Current / Savings)	
05	Account Number (as appear in Cheque book)	

(in lieu of the bank certificate to be obtained , please **attach the original cancelled cheque** issued by your bank for verification of the above particulars).

I /We hereby declare that the particulars given above are correct and complete. If the transaction is delayed or not effected at all for reasons of incomplete or incorrect information, I would not hold M/s. Central Medical Services Society (CMSS) responsible. I have read the conditions of the tender/agreement entered and agree to discharge the responsibility expected of me / from the company as a tenderer /successful tenderer.

Date:
Place:

Company Seal

Signature
(Name of the person
signing& designation)

CERTIFIED THAT THE PARTICULARS FURNISHED ABOVE BY THE COMPANY ARE CORRECT AS PER OUR RECORDS.

Bank Seal with address.

Signature of the authorized
official of the bank.

Annexure-XIII**PACKET -2****PRICE -BID****CENTRAL MEDICAL SERVICES SOCIETY****NEW DELHI – 110021****Tender for empanelment for Quantitative Viral Load Platform for HCV RNA and HBV DNA Under Reagent Rental Model for three years**Schedule of price bid in the form of **BOQ** uploaded online.

[Validate](#)
[Print](#)
[Help](#)
[BoQ](#)

Tender Inviting Authority: Central Medical Services Society

Name of Work: Tender for Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three Years

Contract No: CMSS/PROC/2018-20/NPSVH/006

Name of the Bidder/ Bidding Firm (Company):	
---	--

PRICE SCHEDULE

(This BOQ template must not be modified/replaced by the bidder and the same should be uploaded after filling the relevant columns, else the bidder is liable to be rejected for this tender.
Bidders are allowed to enter the Bidder Name and Values only.)

NUMBER #	TEXT #	TEXT #	NUMBER #	NUMBER	NUMBER	NUMBER #	TEXT #
Sl. No.	Item Description	Units	Quantity Offered	Ex Works price per unit In Rs.	GST (In Rs.)	Total Unit Price With GST(In Rs.) (Col 14+ Col 15)	TOTAL AMOUNT In Words
1	2	5	13	14	15	53	55
1.01	Quantitative Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for 3 years -11 units. (277200 HBV DNA, HCV RNA reportable tests over a period of 3 years (92400 reportable tests / year)			₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
Total in Figures						₹ 0.0000	INR Zero Only
Quoted Rate In Words							

Validate Print Help

Tender Inviting Authority: Central Medical Services Society

Name of Work: Tender for Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three years

Contract No: CMSS/PROC/2019-20/NPSVH/008

Name of the Bidder Bidding Firm /
Company :

PRICE SCHEDULE

(This BOQ template must not be modified/replaced by the bidder and the same should be uploaded after filling the relevant columns, else the bidder is liable to be rejected for this tender. Bidders are allowed to enter the Bidder Name and Values only.)

NUMBER #	TEXT	NUMBER #	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER #	TEXT #
Sl. No.	Name of the Item	Pack Size in Tests	Reportable Tests in Pack	Unit Price in Rs.	GST in %	GST in Rs. (Col 15*16/100)	Price with GST in Rs. (Col 15 + Col 17)	CPRT (Ex. Works cost per reportable test), 24 Batch including control and calibration & Others, (Col 16/Col 14)	CPRT (GST Rs. per reportable test), 24 Batch including control and calibration & Others, (Col 17/Col 14)	CPRT (cost per reportable test), 24 Batch including control and calibration & Others, (Col 20/Col 14)	TOTAL AMOUNT In Words
1	277200 HBV DNA/ HCV RNA reportable test over a period of three years (92400 reportable tests/yr) Supporting Goods/ Items Quoted below table					₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
2						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
3						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
4						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
5						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
6						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
7						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
8						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
9						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
10						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
11						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
12						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
13						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
14						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
15						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
16						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
17						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
18						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
19						₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
20	Total	0				₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
21	Total Price with GST per test in Rs. Sum of Col 53	0								₹ 0.0000	INR Zero Only
Quoted Rate In Words											
INR Zero Only											

Note:

1. Enclosed- Annexure XIII-I for evaluation of price bid (Batch of 24 including control & Cal. & Others) and reference for purchase order.
2. List of consignee as **per Annex-IB**.
3. Details of weight, volume and dimensions of shipping cartons and intermediate cartons may be provided as an additional annex to this form

PRICE –BID Evaluation Example

Validate Print Help **BoQ**

Tender Inviting Authority: Central Medical Services Society

Name of Work: Tender for Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three Years

Contract No: CMSS/PROC/2018-20/NPSVH/008

Name of the Bidder/
Bidding Firm
/ Company :

PRICE SCHEDULE

(This BOQ template must not be modified/replaced by the bidder and the same should be uploaded after filling the relevant columns, else the bidder is liable to be rejected for this tender. Bidders are allowed to enter the Bidder Name and Values only)

NUMBER #	TEXT #	TEXT #	NUMBER #	NUMBER	NUMBER	NUMBER #	TEXT #
Sl. No.	Item Description	Units	Quantity Offered	EX Works price per unit In Rs.	GST (In Rs.)	Total Unit Price With GST (In Rs.) (Col 14+ Col 16)	TOTAL AMOUNT In Words
1	2	5	13	14	15	53	55
1.01	Quantitative Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for 3 years -11 units. (277200 HBV DNA, HCV RNA reportable tests over a period of 3 years (92400 reportable tests / year)		277200	₹ 684.9208	₹ 38.5960	₹ 723.5167	INR Seven Hundred & Twenty Three and Paise Fifty Two Only
Total in Figures						₹ 723.5167	INR Seven Hundred & Twenty Three and Paise Fifty Two Only
Quoted Rate In Words							

Validate Print Help **2**

Tender Inviting Authority: Central Medical Services Society

Name of Work: Tender for Viral Load Platform for HCV RNA and HBV DNA under Reagent Rental Model for three Years

Contract No: CMSS/PROC/2018-20/NPSVH/008

Name of the Bidder Bidding Firm /
Company :

PRICE SCHEDULE

(This BOQ template must not be modified/replaced by the bidder and the same should be uploaded after filling the relevant columns, else the bidder is liable to be rejected for this tender. Bidders are allowed to enter the Bidder Name and Values only)

NUMBER #	TEXT #	NUMBER #	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER	NUMBER #	TEXT #
Sl. No.	Name of the Item	Pack Size in Tests	Reportable Tests in Pack	Unit Price in Rs.	GST in %	GST in Rs. (Col 15*10/100)	Col Price with GST in Rs. (Col 15 + Col 17)	CFRT (Ex Works cost per reportable test), 24 Batch including control and calibration & Others. (Col 16/Col 14)	CFRT (GST Rs. per reportable test), 24 Batch including control and calibration & Others. (Col 17/Col 14)	CFRT (cost per reportable test), 24 Batch including control and calibration & Others. (Col 20/Col 14)	TOTAL AMOUNT In Words
1	8	13	14	15	16	17	20	21	22	53	55
1	277200 HBV DNA/ HCV RNA reportable test over a period of three years (92400 reportable tests/yr) Supporting Goods/ Items Quoted below table	72	83	₹ 40,000.0000	5.0000	₹ 2,000.0000	₹ 42,000.0000	₹ 634.9208	₹ 31.7460	₹ 666.6667	INR Six Hundred & Sixty Six and Paise Sixty Seven Only
2	A	100	100	₹ 2,000.0000	12.0000	₹ 240.0000	₹ 2,240.0000	₹ 20.0000	₹ 2.4000	₹ 22.4000	INR Twenty Two and Paise Forty Only
3	B	100	100	₹ 500.0000	18.0000	₹ 90.0000	₹ 590.0000	₹ 5.0000	₹ 0.9000	₹ 5.9000	INR Five and Paise Ninety Only
4	C	100	100	₹ 1,500.0000	5.0000	₹ 75.0000	₹ 1,575.0000	₹ 15.0000	₹ 0.7500	₹ 15.7500	INR Fifteen and Paise Seventy Five Only
5	D	100	100	₹ 1,000.0000	28.0000	₹ 280.0000	₹ 1,280.0000	₹ 10.0000	₹ 2.8000	₹ 12.8000	INR Twelve and Paise Eighty Only
6				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
7				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
8				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
9				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
10				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
11				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
12				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
13				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
14				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
15				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
16				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
17				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
18				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
19				₹ 0.0000		₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	₹ 0.0000	INR Zero Only
20	Total	0				₹ 2,685.0000	₹ 47,685.0000	₹ 684.9208	₹ 38.5960	₹ 723.5167	INR Seven Hundred & Twenty Three and Paise Fifty Two Only
21	Total Price with GST per test In Rs. Sum of Col 53	0								₹ 723.5167	INR Seven Hundred & Twenty Three and Paise Fifty Two Only
Quoted Rate In Words											
INR Seven Hundred & Twenty Three and Paise Fifty Two Only											

Annexure-XIV**Bank Guarantee for EMD (Format)**

[The Bank shall fill in this Bank Guarantee Form in accordance with the instructions indicated.]

*[insert **Bank's Name**, and **Address** of Issuing Branch or Office]*

Beneficiary: *[insert **Name and Address of Purchaser**]*

Date: _____

BIDGUARANTEE No.: _____

We have been informed that *[insert **name of the Tenderer**]* (hereinafter called "the Tenderer") has submitted to you its bid dated (hereinafter called "the Bid") for the execution of *[insert **name of contract**]* under Tender No.....

Further more, we understand that, according to your conditions, bids must be supported by a EMD.

At the request of the Tenderer ,we *[insert **name of Bank**]* hereby irrevocably under take to pay you any sum or sums not exceeding in total an amount of *[insert **amount in figures**]* (*[insert **amount in words**]*) upon receipt by us of your first demand in writing accompanied by a written statement stating that the Tenderer is in breach of its obligation(s) under the bid conditions, because the Tenderer :

- (a) has withdrawn its Bid during the period of bid validity specified by the Tenderer in the Form of Bid; or
- (b) having been notified of the acceptance of its Bid by the Purchaser during the period of bid validity, (i) fails or refuses to execute the Contract Form, if required, or (ii) fails or refuses to furnish the security deposit, in accordance with the Instructions to Tenderers.
- (c) does not accept the correction of the Bid Price
- (d) This guarantee will expire: (a) if the Tenderer is the successful tenderer ,upon our receipt to copies of the contract signed by the Tenderer and the performance security issued to you upon the instruction of the Tenderer ; or (b) if the Tenderer is not the successful tenderer ,upon the earlier of (i) our receipt of a copy of your notification to the Tenderer of the name of the successful tenderer ;or (ii) Forty five days after the expiration of the Tenderer's Bid.

Consequently, any demand for payment under this guarantee must be received by us at the office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 758.

[signature(s)]

Annexure-XV**Security Bank Guarantee (Format)**

_____ *[insert: Bank's Name, and Address of Issuing Branch or Office]*

Beneficiary: _____ *[insert: Name and Address of Purchaser]*

Date: _____

PERFORMANCE GUARANTEE No.: _____

We have been informed that *[insert: name of Supplier]* (hereinafter called "the Supplier") has received a Letter of Acceptance No. *[insert: reference number of the Letter of Acceptance]* dated _____ for entering into a Rate Agreement with you, for the supply of *[insert: description of goods]*

Furthermore, we understand that, according to the conditions of the Tender, a performance guarantee is required post acceptance of letter of Acceptance.

At the request of the Supplier, we *[insert: name of Bank]* hereby irrevocably undertake to pay you any sum or sums not exceeding in total an amount of *[insert: amount in figures]* (____) *[insert: amount in words]*¹ upon receipt by us of your first demand in writing accompanied by a written statement stating that the Supplier is in breach of its obligation(s) under the Tender, without your needing to prove or to show grounds for your demand or the sum specified therein.

This guarantee shall expire no later than the ____ day of _____, 2____, and any demand for payment under it must be received by us at this office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 458, except that subparagraph (ii) of Sub-article 20(a) is hereby excluded.

[signature(s)]

The Guarantor shall insert an amount representing the percentage of the Price specified in the letter of Acceptance and denominated in the currency of the Contract.

Annexure-XVI**Instructions for Online Bid Submission**

The tenderers are required to submit soft copies of their bids electronically on the CPP Portal, using valid Digital Signature Certificates. The instructions given below are meant to assist the tenderers in registering on the CPP Portal, prepare their bids in accordance with the requirements and submitting their bids online on the CPP portal.

More information useful for submitting online bids on the CPP Portal may be obtained at:

REGISTRATION

- 1) Tenderers are required to enroll on the e-Procurement module of the Central Public Procurement Portal (URL: <https://eprocure.gov.in/eprocure/app>) by clicking on the link “**Online tenderer Enrollment**” on the CPP Portal which is free of charge.
- 2) As part of the enrolment process, the tenderers will be required to choose a unique user name and assign a password for their accounts.
- 3) Tenderer s are advised to register their valid email address and mobile numbers as part of the registration process. These would be used for any communication from the CPP Portal.
- 4) Upon enrolment, the tenderers will be required to register their valid Digital Signature Certificate (Class II or Class III Certificates with signing key usage) issued by any Certifying Authority recognized by CCA India (e.g. Sify/ n- Code/e-Mudhra etc.),with their profile.
- 5) Only one valid DSC should be registered by a tenderer .Please note that the tenderer s are responsible to ensure that they donot lend their DSC’s to others which may lead to misuse.
- 6) Tenderer then logs into the site through the secured log-in by entering their user ID /password and the password of the DSC /e-Token.

SEARCHING FOR TENDER DOCUMENTS

- 1) There are various search options built in the CPP Portal, to facilitate tenderers to search active tenders by several parameters. These parameters could include Tender ID, Organization Name, Location, Date, Value, etc. There is also an option of advanced search for tenders, wherein the tenderers may combine a number of search parameters such as Organization Name, Form of Contract, Location, Date, Other keywords etc. to search for a tender published on the CPP Portal.
- 2) Once the tenderers have selected the tenders they are interested in, they may download the required documents/tender schedules. These tenders can be moved to the respective ‘My Tenders’ folder. This would enable the CPP Portal to intimate the tenderers through SMS /e-mail in case there is any corrigendum issued to the tender document.

- 3) The tenderer should make a note of the unique Tender ID assigned to each tender, incase they want to obtain any clarification/help from the Helpdesk.

PREPARATION OF BIDS

- 1) Tenderer should take into account any corrigendum published on the tender document before submitting their bids.
- 2) Please go through the tender advertisement and the tender document carefully to understand the documents required to be submitted as part of the bid. Please note the number of covers in which the bid documents have to be submitted, the number of documents-including the names and content of each of the document that need to be submitted. Any deviations from these may lead to rejection of the bid.
- 3) Tenderer ,in advance, should get ready the bid documents to be submitted as indicated in the tender document/schedule and generally, they can be in PDF/XLS/RAR/DWF/JPG formats. Bid documents may be scanned with 100dpi with black and white option which helps in reducing size of the scanned document.
- 4) To avoid the time and effort required in uploading the same set of standard documents which are required to be submitted as a part of every bid, a provision of uploading such standard documents (e.g. PAN card copy, annual reports, auditor certificates etc.) has been provided to the tenderers. Tenderer scan use "My Space" or "Other Important Documents" area available to them to upload such documents. These documents maybe directly submitted from the "My Space" area while submitting a bid, and need not be uploaded again and again. This will lead to a reduction in the time required for bid submission process.

SUBMISSION OF BIDS

- 1) Tenderer should log into the site well in advance for bid submission so that they can upload the bid in time i.e. on or before the bid submission time. Tenderer will be responsible for any delay due to other issues.
- 2) The tenderer has to digitally sign and upload the required bid documents one by one as indicated in the tender document.
- 3) Tenderer has to select the payment option as "offline" to pay the tender fee/ EMD as applicable and enter details of the instrument.
- 4) Tenderer should prepare the EMD as per the instructions specified in the tender document. The original should be posted/couriered/given in person to the concerned official, latest by the last date of bid submission or as specified in the tender documents. The details of the DD/any other accepted instrument, physically sent, should tally with the details available in the scanned copy and the data entered during bid submission time. Otherwise the uploaded bid will be rejected.

- 5) Tenderers are requested to note that they should necessarily submit their financial bids in the format provided and no other format is acceptable. If the price bid has been given as a standard BoQ format with the tender document, then the same is to be downloaded and to be filled by all the tenderers. Tenderers are required to download the BoQ file, open it and complete the white coloured (unprotected) cells with their respective financial quotes and other details (such as name of the tenderer). No other cells should be changed. Once the details have been completed, the tenderer should save it and submit it online, without changing the file name. If the BoQ file is found to be modified by the tenderer , the bid will be rejected.
- 6) The server time (which is displayed on the tenderers' dashboard) will be considered as the standard time for referencing the deadlines for submission of the bids by the tenderers, opening of bids etc. The tenderers should follow this time during bid submission.
- 7) All the documents being submitted by the tenderers would be encrypted using PKI encryption techniques to ensure the secrecy of the data. The data entered cannot be viewed by unauthorized persons until the time of bid opening. The confidentiality of the bids is maintained using the secured Socket Layer 128 bit encryption technology. Data storage encryption of sensitive fields is done. Any bid document that is uploaded to the server is subjected to symmetric encryption using a system generated symmetric key. Further this key is subjected to a symmetric encryption using buyers/bid openers' public keys. Overall, the uploaded tender documents become readable only after the tender opening by the authorized bid openers.
- 8) The uploaded tender documents become readable only after the tender opening by the authorized bid openers.
- 9) Upon the successful and timely submission of bids (i.e. after Clicking "Freeze Bid Submission" in the portal), the portal will give a successful bid submission message & a bid summary will be displayed with the bid no. and the date & time of submission of the bid with other relevant details.
- 10) The bid summary has to be printed and kept as an acknowledgement of the submission of the bid. This acknowledgement may be used as an entry pass for any bid opening meetings.

ASSISTANCE TO TENDERERS

- 1) Any queries relating to the tender document and the terms and conditions contained there in should be addressed to the Tender Inviting Authority for a tender or the relevant contact person indicated in the tender.
- 2) Any queries relating to the process of online bid submission or queries relating to CPP Portal in general may be directed to the 24x7 CPP Portal Helpdesk Ph.:0120-4200462, 0120-4001002.Mobile: 91 8826246593

.....

Annexure- XVII

No Deviation Certificate

This is to certify that the product(s) quoted_____ by our firm, M/s. _____ is as per the given technical specifications in the tender document & there is no deviation in relation to any conditions/requirements specified in the tender document.

Signature (with Stamp)

Annexure-XVIII***Near Relative Certificate***

(In case of Proprietorship firm certificate will be given by the proprietor. For partnership firm certificate will be given by all the partners and in case of limited company by all the Directors of the company excluding Govt. of India/Financial Institutions nominees and independent non-official part time directors appointed by Govt. of India or the Governor of the state. Authorised signatory of bid may also sign this bid on behalf of the entire directors/ partners/ proprietor).

This is to certify that none of my/our Company Directors' near relative as defined below currently works in CMSS where I am/we are going to apply for the tender. I/We also agree to the condition that due to any breach of conditions by the company or firm or any other related person the bid submitted on behalf of the company or firm will be cancelled and bid security will be forfeited at any stage whenever it is noticed and CMSS will not pay any damage to the company or firm or the concerned person. The company or firm will also be debarred for further participation for the quoted item in CMSS for a period of one year.

The near relatives for this purpose are defined as:

- (a) Members of a Hindu undivided family.
- (b) They are husband and wife.
- (c) The one is related to the other in the manner as father, mother, son(s) & son's wife (Daughter in law), daughter(s) and daughter's husband (son in law), brothers(s) and brother's wife, sister(s) and sister's husband (brother in law).

Signature/Signatures (with Stamp)

Annexure XIX**MANUFACTURER'S AUTHORISATION FORM**

To,

DG&CEO,
Central Medical Services Society
2nd Floor, Vishwa Yuvak Kendra,
Pt. Uma Shankar Dikshit Marg, Teen Murti Marg,
Opposite Police Station Chankaya Puri, New Delhi-110021

Dear Sir,

Ref: Your TE document No _____ dated _____

We, _____ who are proven and reputable manufacturers of _____ (name and description of the goods offered in the tender) having factories at _____, hereby authorise Messrs _____ (name and address of the agent) to submit a tender, process the same further and enter into a contract with you against your requirement as contained in the above referred TE documents for the above goods manufactured by us.

We also state that we are not participating directly in this tender for the following reason(s):

_____ (please provide reason here).

We further confirm that no supplier or firm or individual other than Messrs. _____ (name and address of the above agent) is authorised to submit a tender, process the same further and enter into a contract with you against your requirement as contained in the above referred TE documents for the above goods manufactured by us.

We also hereby extend our full warranty, ACMC as applicable as per the terms of the tender document, read with modification, if any, for the goods and services offered for supply by the above firm against this TE document.

We also hereby confirm that we would be responsible for the satisfactory execution of contract placed on the authorised agent

We also confirm that the price quoted by our agent shall not exceed the price which we would have quoted directly"

Yours faithfully,

**[Signature with date, name and designation]
for and on behalf of Messrs_____**

**[Signature with date, name and designation]
for and on behalf of Messrs_____**

[Name & address of the manufacturers]

[Name & address of the bidder]

- Note:
1. This letter of authorisation should be on the letter head of the manufacturing firm and should be signed by a person competent and having the power of attorney to legally bind the manufacturer.
 2. Original letter shall be submitted at the time of signing the contract; scanned copy to be uploaded at the e-procurement site.
 3. Manufacturer is solely responsible for providing the continuing warranty, ACMC service and Contractual Obligations for the approved stipulated period.

Annexure XX**Details of Service Centre**

Service Centre Address	
Contact No	
Email Address	
Name of Head of Service Centre with Contact Details	
Name of Service engineer with Contact details location wise	
1	
2	
3	
4	
5	
6	
7	
8	
9	
10	

Signature Head of Service Centre with Seal**Signature of Bidder with Seal**

Annexure XXI (Not Applicable)
(on Rs. 100 stamp paper)

CONTRACT FORM FOR ANNUAL COMPREHENSIVE MAINTENANCE CONTRACT

Annual CM Contract No._____ **dated**_____
Between_____

 (Address of Head of Hospital)
And_____

 (Name & Address of the Supplier)

Ref: Contract No_____ **dated**_____ **(Contract No. & date of**
Contract for supply, installation, commissioning, handing over, Trial run,
Training of operators & warranty of goods)

In continuation to the above referred contract

1	2	4					5
S.No.	BRIEF DESCRIPTION OF GOODS	Annual Comprehensive Maintenance Contract Cost one Unit year wise*. (in INR inclusive of all applicable taxes)					Total Annual Comprehensive Maintenance Contract Cost for 5 Years (4a+4b +4c+4d+4e) (in INR inclusive of all applicable taxes)
		1 st	2 nd	3 rd	4 th	5 th	
		a	b	c	d	e	

- a) The Contract of Annual Comprehensive Maintenance is hereby concluded as under: -

Total value (in figure) _____ (In words) _____

- b) The ACMC commence from the date of expiry of all obligations under Warranty i.e. from _____ (date of expiry of Warranty) and will expire on _____ (date of expiry of ACMC)
- c) The cost of Annual Comprehensive Maintenance Contract (ACMC) which includes preventive maintenance, labour and spares, after satisfactory completion of Warranty period may be quoted for subsequent years as contained in the above referred contract on yearly basis for complete equipment (including X ray tubes, Helium for MRI, Batteries for UPS, other vacuumatic parts, _____ & _____) and Turnkey (if any).
- d) There will be 98% uptime warranty during ACMC period on 24 (hrs) X 7 (days) X 365 (days) basis, with penalty(As per clause no 18), to extend ACMC period by double the downtime period.
- e) During ACMC period, the supplier shall visit at each consignee's site for preventive maintenance including testing and calibration as per the manufacturer's service/ technical/ operational manual. The supplier shall visit each consignee site as recommended in the manufacturer's manual, but at least once in 6 months commencing from the date of the successful completion of warranty period for preventive maintenance of the goods.
- f) All software updates should be provided free of cost during ACMC.
- g) The bank guarantee valid till _____ [(fill the date) 2 months after expiry of entire ACMC period] for an amount of Rs. _____ [(fill amount) equivalent to 5 % of the cost of the equipment as per contract] shall be furnished in the prescribed format given in Annexure XV of the TE document, along with the signed copy of Annual CMC within a period of 21 (twenty one) days of issue of Annual CMC failing which the proceeds of Performance Security shall be payable to the TIA/Consignee.
- h) If there is any lapse in the performance of the ACMC as per contract, the proceeds Annual CMC bank guarantee for an amount of Rs. _____ (equivalent to 5 % of the cost of the equipment as per contract) shall be payable to the Consignee.
- i) **Payment terms:** The payment of Annual CMC will be made against the bills raised to the consignee by the supplier on six monthly basis after satisfactory completion of said period, duly certified by the HOD concerned. The payment will be made in Indian Rupees.

j) **Paying authority:**

(name of the consignee i.e.
Hospital authorised official)

(Signature, name and address
Of Hospital authorised official)
For and on behalf of _____
Received and accepted this contract

(Signature, name and address of the supplier's executive
duly authorised to sign on behalf of the supplier)
For and on behalf of _____
(Name and address of the supplier)

(Seal of the supplier)

Date: _____

Place: _____

Annexure XXII
CONSIGNEE RECEIPT CERTIFICATE

(To be given by consignee's authorized representative)

The following store(s) has/have been received in good condition:

- 1) Contract / P.O No. & date:_____
- 2) Supplier's Name:_____
- 3) Consignee's Name & Address with telephone No. & Fax No. : _____

- 4) Name of the item supplied:_____
- 5) Quantity Supplied:_____
- 6) Date of Receipt by the Consignee:_____
- 7) Site Readiness status confirm by the
Consignee:_____
- 8) Name and designation of Authorized Representative of Consignee
:_____
- 9) Signature of Authorized Representative of Consignee with
date:_____
- 10) Counter Signed by Director/MS/Dean of the concerned
Hospital/Institute:_____
- 11) Seal of the Consignee:_____

Annexure XXIII**Performa of Final Acceptance Certificate by the Consignee****No** _____**Date** _____**To**

M/s _____

Subject: Certificate of commissioning of equipment/plant.

This is to certify that the equipment(s)/plant(s) as detailed below has/have been received in good conditions along with all the standard and special accessories and a set of spares (subject to remarks in Para no.02) in accordance with the contract/technical specifications. The same has been installed and commissioned.

(a) Contract No. _____ dated _____

(b) Description of the equipment(s)/plants: _____

(c) Equipment(s)/ plant(s) nos.: _____

(d) Quantity: _____

(e) Bill of Lading/Air Way Bill/Railway Receipt/ Goods Consignment Note no. _____ dated _____

(f) Name of the vessel/Transporters: _____

(g) Name of the Consignee: _____

(h) Date of Installation/ commissioning and proving test: _____

Details of accessories/spares not yet supplied and recoveries to be made on that account.

Sl. No.	Description of Item	Quantity	Amount to be recovered

The proving test has been done to our entire satisfaction and operators have been trained to operate the equipment(s)/plant(s).

The supplier has fulfilled its contractual obligations satisfactorily or

The supplier has failed to fulfil its contractual obligations with regard to the following:

- a)** He has not adhered to the time schedule specified in the contract in dispatching the documents/ drawings pursuant to 'Technical Specifications'.
- b)** He has not supervised the commissioning of the equipment(s)/plant(s) in time, i.e. within the period specified in the contract from date of intimation by the TIA/Consignee in respect of the installation of the equipment(s)/plant(s).
- c)** The supplier as specified in the contract has not done training of personnel.

The extent of delay for each of the activities to be performed by the supplier in terms of the contract is

The amount of recovery on account of non-supply of accessories and spares is given under Para no.02.

The amount of recovery on account of failure of the supplier to meet his contractual obligations is_____ (here indicate the amount).

(Signature)

(Name)

(Designation with stamp)

*(Counter Signed by Director/MS/Dean
of the concerned Hospital/Institute)*

Explanatory notes for filling up the certificate:

- i)** He has adhered to the time schedule specified in the contract in dispatching the documents/drawings pursuant to 'Technical Specification'.
- ii)** He has supervised the commissioning of the equipment(s)/plant(s) in time, i.e. within the time specified in the contract from date of intimation by the TIA/Consignee in respect of the installation of the equipment(s)/plant(s).
- iii)** Training of personnel has been done by the supplier as specified in the contract.
- iv)** In the event of documents/drawings having not been supplied or installation and commissioning of the equipment(s)/plant(s) having been delayed on account of the supplier, the extent of delay should always be mentioned in clear terms.